TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, NOVEMBER 9, 2022
6:00 PM

BUDGET HEARING **page 3 – 33**
Note: October 25, 2022 Published Advertisement

AGENDA HEARING

Public has five minutes per person to ask questions or comment on any agenda item.

REGULAR MEETING

1. **Call to order**

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

3. **Approval of Meeting Agenda**

4. **Approval of Minutes from Previous Meeting**: **page 34 – 37**
   Minutes of October 12, 2022

5. **Presentations:**

   a) Finance Report: **page 38 – 39**

6. **Consent Agenda:**

   a) Approval of the Thunderbolt Museum Lease. Staff Recommends Approval. **page 40 – 54**

   b) Formal Approval of the Wesley Oak Methodist Church Outdoor Event held October 29, 2022. This Event Was Approved by Email but it Needs to be Approved Formally by Council. **page 55 – 60**

   c) Approval of the Cost Recovery Agreement and Resolution for Fire Department. This Agreement Allows a Billing to Insurance Companies Only and Only for Non-County Residents. The Billing is handled by a Third Party. This Agreement is Being Used Around the County. The Resolution Allows for this Billing to be Implemented. Staff Recommends Approval. **page 61 – 79**

7. **Discussion Agenda:**

   a) Discussion of a One Dollar Increase in Sanitation Cost.

8. **Department Report –** Written Reports Submitted

by: **Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police** **page 80 – 81**
Fire –Fire Chief, Andrew Bateman **page 82 - 84**
Public Works Department – Oscar Crosby, Public Works Manager **page 85 – 95**

9. **Town Administrator Report:** Town Administrator, Bob Milie **page 96 – 97**

10. **Legal Report – Town Attorney**

11. **Mayor and Council –**

    a) TDRUP Ad hoc Committee Council Member Drohan

12. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal, Real Estate and/or Personnel matters.

13. **Adjournment:**

DANA WILLIAMS
MAYOR

ROBERT L. MILIE
TOWN ADMINISTRATOR

DEATRE N. DENION
CLERK/ZONING ADMINISTRATOR

CHARLES W. BARROW
TOWN ATTORNEY

COUNCIL MEMBERS

DAVID P. CRENSHAW

EDWARD M. DROHAN, III

LAWRENCE WARD

BROOKS BARBAREE

JAMES LAVIN

BETHANY SKIPPER-GREER

Thunderbolt FY23
Budget Process

The following is a flow chart of dates and objectives to ensure the Town stays on track, to ensure an appropriate timeline, and in compliance with state law.

Individual one-offs with councilmembers – ongoing – 5 more members to meet with.

11/2/22 @ 1800 - Budget Workshop with council, open to the public, but not a hearing, a council presentation etc.

11/9/22 @ 1800 – Budget Hearing – public input prior to regularly scheduled council meeting

12/14/22 @ 1800 - Budget Hearing – public input prior to regularly scheduled council meeting

12/14/22 – Adopt FY 23 approved budget with resolution during council meeting

If the dates are acceptable to council, we will publish in the Savannah Morning News (not in the legal section) an advertisement to run that announces the budget process, including public meeting workshop and two hearings, plus location to receive a copy of the proposed budget plus the website.

First ad to run by 10/25/22 and must submit to SMN by 10/11/22.

Second ad to run by 12/6/22 for public hearing and meeting resolution vote – to SMN by 11/17/22

Town of Thunderbolt, Georgia
FISCAL YEAR 2023 (FY23)
BUDGET REVIEW & ADOPTION SCHEDULE

TOWN COUNCIL WORKSHOP – Subject – Budget – Executive Session – Personnel, Legal, & Real Estate - Date November 2nd, 2022 at 6:00 p.m. - in the Town Hall Chambers located at 2821 River Drive – 2nd Floor.

PUBLIC HEARING ON FY2023 BUDGET: A Public Hearing on the FY2023 Budget is scheduled for November 9th, 2022 at 6:00p.m. in the Town Hall Chambers located at 2821 River Drive – 2nd Floor. At this meeting, the Mayor and Council will receive both written and oral comments about the Annual Operating and Capital Budget for the Town of Thunderbolt, Georgia.

PUBLIC HEARING ON FY2023 BUDGET: A Public Hearing on the FY2023 Budget is scheduled for December 14th, 2022 at 6:00p.m. in the Town Hall Chambers located at 2821 River Drive – 2nd Floor. At this meeting, the Mayor and Council will receive both written and oral comments about the Annual Operating and Capital Budget for the Town of Thunderbolt, Georgia.

RECOMMENDED BUDGET AVAILABLE FOR REVIEW: The FY2023 Recommended Budget will be available for public inspection during normal office hours at Town Hall 2821 River Drive., beginning 11/9/22; and a summary budget on the Town of Thunderbolt website – www.thunderboltga.org

BUDGET ADOPTION: The Mayor and Council of the Town of Thunderbolt are scheduled to adopt the FY2023 Budget at their regular monthly meeting on December 4th, 2022. The meeting will be held at 6:30 p.m. in the Town Hall Chambers located at 2821 River Drive – 2nd Floor.

BUDGET WISHLISTS

Dr. Drohan Budget Wishlist 2023

	Item		Budget
1	Pickle Ball		
2	Rent treated as fund to Parks & Rec department		
3	Cherry Blossom Trees		
4	Ceseroni Park Plan		
5	Waterfront area with benches on River Dr.		
6	Honey Park		
7	Water & Sewer: Oscar Wish List: 5 Year Plan		
		Can & Line 2 years worth	
		Virtual Readings	
		Major Plans: Shell Road	
8	Salaries DPW		
9	Solar: Town Hall		
10	2-5-10 Plan		
11	Projected Savings		
		2 days- 2 people times 12 months	
		Cost of Equipment	
12	Council Lethergy		
13	Dr. Drohan Intern		

James Lavin Budget Wishlist 2023

Item	Budget
Dog Park	
Festivals	
Event Budget	
Potholes	
Sewage Infrastructure	

Brooks Barbaree Budget Wishlist 2023

Item	Budget
Work/Life Staff	
Potholes	
Beautification	

Larry Ward Budget Wishlist 2023

Item	Budget
Parks Beautified	
Potholes	TSPLOST
Water System	
Staff	
Blight	
Half Projects: Interior	
Ceseroni Park Stage	

Bethany Skipper Budget Wishlist 2023

Item	Budget
Trunk or Treat	
Blessing of the Fleet	
Christmas on the Bluff	
4th of July Celebration	
Concert Series	
Kids Movie	
Thunderbolt Pride	

David Crenshaw Budget Wishlist 2023

Item	Budget
Tree Survey (Check on Next Update Deadline)	
Sidewalks: ADA Compliance	
Potholes: River Drive	
Thomas & Hutton: Force Main	

Mayor Williams 2023

Item	Budget
Parks Beautified	
Potholes	
Water System - infrastructure	
Balanced Budget - no tax increase	
History - QR codes	
Events	
Park Plan	

Town of Thunderbolt, Georgia

2023 Annual Budget

Adopted December XX, 2022



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General Fund

The General Fund is the primary operating budget of the Town. The General Fund accounts for the financial resources of the Town which are not accounted for in any other fund. Principal revenue sources are property taxes, beverage taxes, state and local use tax, licenses, permits and fines. The General Fund accounts for expenditures related to the general administration of the Town (general government), the protection and safety of people within the Town, including police, fire services, code enforcement (public safety), the maintenance and upkeep of infrastructure and Town property within the Town (public works), as well as providing a sense of community.

This section of the budget is organized as follows:

1. General Fund Summary – shows revenues grouped by source and expenditures by function
2. General Fund Detailed Revenues Budget – provides revenue by line item for each major revenue source
3. General Fund Expenditures by Department – shows the detailed expenditures for each department in the General Fund

General Fund
Summary of Revenues & Expenditures

	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
Revenues:							
Taxes	$ 2,171,885	$ 2,482,440	$ 2,218,000	$ 1,576,993	$ 2,460,000	$ 2,283,000	2.93%
Licenses & Permits	121,459	110,575	101,500	105,347	114,425	114,500	12.81%
Intergovernmental Revenue	257,533	268,836	81,858	58,143	63,102	80,124	-2.12%
Charges for Services	285,415	290,700	9,500	7,469	9,225	9,000	-5.26%
Fines & Forfeitures	87,475	195,942	163,300	127,256	147,050	141,750	-13.20%
Miscellaneous Revenues	53,748	46,587	38,000	107,220	136,500	191,550	404.08%
Total General Fund Revenue	$ 2,977,515	$ 3,395,080	$ 2,612,158	$ 1,982,428	$ 2,930,302	$ 2,819,924	7.95%
Expenditures:							
Mayor & Council	$ 16,126	$ 17,838	$ 32,275	$ 24,365	$ 31,119	$ 32,775	1.55%
General Administrative	595,263	693,618	431,373	395,988	497,031	598,801	38.81%
General Government Buildings & Plant	101,956	196,261	102,000	62,001	94,000	95,000	-6.86%
Municipal Court	144,461	168,489	113,168	104,250	141,401	155,293	37.22%
Police Department	737,676	729,851	781,957	528,296	791,135	762,649	-2.47%
Fire Department	550,545	571,902	592,836	367,460	544,012	615,947	3.90%
Streets	434,472	536,463	389,199	147,497	350,750	381,159	-2.07%
Senior Citizens	58,224	60,882	35,750	28,176	38,808	38,000	6.29%
Recreation	3,138	13,703	25,500	18,710	26,500	29,500	15.69%
Museum	8,797	9,279	3,000	2,384	2,790	3,000	0.00%
Zoning Board / Commission	986	1,002	5,100	1,698	5,100	7,800	52.94%
Other Uses	2,277	-	100,000	-	100,000	100,000	0.00%
Total General Fund Expenditures	$ 2,653,921	$ 2,999,288	$ 2,612,158	$ 1,680,825	$ 2,622,645	$ 2,819,924	7.95%
Beginning Fund Balance	$ 3,687,844	$ 4,011,438	$ 4,407,230	$ 4,407,230	$ 4,407,230	$ 4,714,887	
Annual Income / (Loss)	323,594	395,792	-	301,603	307,657	-	
Adjustments for accruals	-			-	-	-	
Transfer to Capital Fund	-	-	-	-	-	-	
Ending Fund Balance	$ 4,011,438	$ 4,407,230	$ 4,407,230	$ 4,708,833	$ 4,714,887	$ 4,714,887	

General Fund
Detailed Revenues

Account	Account Name	2019 Actual	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Taxes								
31101	General Property Tax	$ 643,906	$ 635,085	$ 653,734	$ 645,000	$ 323,021	$ 675,000	$ 700,000	8.53%
31131	Motor Vehicle Tax (MVT)	5,500	4,059	8,538	7,000	2,418	4,000	4,500	-35.71%
31132	Mobile Home Tax	2,564	1,824	2,887	2,500	2,754	3,000	3,000	20.00%
31134	Recording Tax (Intangibles)	11,791	13,867	17,807	12,000	9,532	12,000	12,000	0.00%
31160	Real Estate Transfer Tax	7,306	6,435	10,494	6,000	4,338	6,000	6,000	0.00%
31179	Franchise Tax - Electric	198,964	198,657	222,264	198,000	186,959	200,000	200,000	1.01%
31310	Local Option Sales & Use Tax (LOST)	1,010,440	980,353	1,199,851	1,000,000	935,711	1,200,000	1,000,000	0.00%
31315	Recording Tax (TVAT)	66,102	54,450	66,440	65,000	39,162	55,000	55,000	-15.38%
31440	Energy Excise Tax	19,496	19,648	33,457	20,000	32,003	40,000	35,000	75.00%
31420	Alcoholic Beverage Excise Tax	37,445	35,984	45,656	40,000	24,173	37,500	40,000	0.00%
31430	Local Alcoholic Beverage Tax	18,495	15,514	10,109	15,000	15,231	20,000	20,000	33.33%
31620	Insurance Premium Tax	192,164	202,706	209,509	205,000	-	205,000	205,000	0.00%
31990	Penalties & Interest on Delinquent Tax	2,910	3,303	1,694	2,500	1,691	2,500	2,500	0.00%
	Total Taxes	2,217,083	2,171,885	2,482,440	2,218,000	1,576,993	2,460,000	2,283,000	2.93%
	Licenses & Permits								
32115	Alcohol Beverage License	20,300	22,150	26,878	22,000	27,425	27,425	25,000	13.64%
32122	General Business License	7,520	7,110	6,200	7,000	6,735	7,000	7,000	0.00%
32129	Business License	56,179	55,694	43,761	50,000	50,115	53,000	55,000	10.00%
32191	HM OCC/PR Care HH RE	3,450	2,850	2,450	2,500	1,504	2,000	2,500	0.00%
32310	Building Permits	31,224	33,655	31,286	20,000	19,568	25,000	25,000	25.00%
	Total Licenses & Permits	118,673	121,459	110,575	101,500	105,347	114,425	114,500	12.81%
	Intergovernmental Revenue								
33412	State Operational Grant	5,433	184,280	203,075	-	14,102	14,102	-	0.00%
33600	CNT Force	14,283	43,609	65,761	51,858	44,041	49,000	50,124	-3.34%
	LMIG	36,745	29,644	-	30,000	-	-	30,000	100.00%
	Misc Grant	4,621	-	-	-	-	-	-	0.00%
	Total Intergovernmental Revenue	61,082	257,533	268,836	81,858	58,143	63,102	80,124	-2.12%

General Fund
Detailed Revenues (Continued)

Account	Account Name	2019 Actual	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Charges for Services								
34135	Plan Development Application	2,300	1,900	900	1,000	900	1,000	1,000	0.00%
34212	Special Police Service - Accident	8,675	3,115	4,750	4,500	2,344	4,000	4,000	-11.11%
34220	Special Service District - Fire Subscript	2,100	3,650	4,050	4,000	4,225	4,225	4,000	0.00%
34990	Admin Services to Water / Sewer Fund	-	276,750	281,000	-	-	-	-	0.00%
	Total Charges for Services	13,075	285,415	290,700	9,500	7,469	9,225	9,000	-5.26%
	Fines & Forfeitures								
35100	Police Fines	130,377	60,328	184,893	110,000	106,482	115,000	110,000	0.00%
35101	Administrative Fees	5,733	1,827	718	4,500	3,562	4,000	4,000	-11.11%
35103	Contempt Fee	6,850	5,000	1,400	3,500	2,600	2,750	2,500	-28.57%
35109	Indigent Defense Application	750	250	-	300	-	300	250	-16.67%
35112	Probation Payments	53,046	20,070	8,931	45,000	14,612	25,000	25,000	-44.44%
	Total Fines & Forfeitures	196,756	87,475	195,942	163,300	127,256	147,050	141,750	-13.20%
	Miscellaneous Revenue								
36100	Investment Income	2,711	623	6,290	1,500	1,012	1,500	1,550	3.33%
37105	Donations	-	-	1,000	-	-	-	-	0.00%
	Event Sponsorship	-	-	-	-	-	-	70,000	100.00%
38100	Leases & Rentals	28,240	31,223	13,128	15,000	35,042	40,000	75,000	400.00%
38901	Miscellaneous Revenue	16,175	2,090	6,169	1,500	71,166	75,000	25,000	100.00%
38902	Insurance Reimbursement	13,293	19,812	20,000	20,000	-	20,000	20,000	100.00%
	Total Miscellaneous Revenue	60,419	53,748	46,587	38,000	107,220	136,500	191,550	404.08%
	Total General Fund Revenue	**$ 2,667,088**	**$ 2,977,515**	**$ 3,395,080**	**$ 2,612,158**	**$ 1,982,428**	**$ 2,930,302**	**$ 2,819,924**	7.95%

General Fund Expenditures
Mayor & Council - 13100

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Personnel							
51102	Council Salaries	$ 7,725	$ 8,120	$ 19,200	$ 13,123	$ 17,923	$ 19,200	0.00%
51220	FICA Taxes	591	621	1,475	979	1,371	1,475	0.00%
51240	Retirement	1,759	1,058	1,100	98	1,100	1,100	0.00%
	Total Personnel	10,075	9,799	21,775	14,200	20,394	21,775	0.00%
	Services							
52350	Travel / Training / Events	2,335	2,951	5,000	6,124	6,125	5,000	0.00%
52360	Dues & Membership	454	1,313	1,000	596	600	1,000	0.00%
52397	Legal Notices	708	410	1,000	80	250	1,000	0.00%
	Total Services	3,497	4,674	7,000	6,800	6,975	7,000	0.00%
	Supplies & Other							
53110	Supplies	790	1,518	1,000	1,704	1,750	1,500	50.00%
53120	Special Projects	1,764	1,847	2,500	1,661	2,000	2,500	0.00%
	Total Supplies	2,554	3,365	3,500	3,365	3,750	4,000	14.29%
	Total Mayor & Council	16,126	17,838	32,275	24,365	31,119	32,775	1.55%

General Fund Expenditures
General & Administrative - 15010

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change	
	Personnel								
51100	Salaries & Wages	$ 268,425	$ 288,624	$ 118,274	$ 90,363	$ 134,000	$ 143,475	21.31%	
51210	Insurance Benefits	45,042	56,475	12,011	2,798	5,498	17,008	41.60%	
51220	FICA Taxes	19,742	22,632	9,050	7,435	10,250	10,979	21.31%	
51240	Retirement	31,996	32,221	15,387	11,623	15,387	17,719	15.16%	
51270	Workers Compensation	70,897	82,369	72,855	67,254	72,855	55,320	-24.07%	
	Total Personnel	436,102	482,321	227,577	179,473	237,990	244,501	7.44%	(1)
	Services								
52120	Contract Services	39,910	81,935	85,000	95,803	125,000	130,000	52.94%	(2)
52310	Property & Liability Insurance	91,774	85,546	80,796	85,000	91,541	85,800	6.19%	
52322	Dues & Membership	5,994	13,259	10,000	8,684	10,000	10,000	0.00%	
52350	Travel / Training / Events	4,413	8,779	7,500	8,633	10,000	16,000	113.33%	
	Special Events (sponsored)	-	-	-	-	-	90,000	100.00%	(3)
52396	Bank Service Charges	3,453	2,571	3,000	4,755	5,000	5,000	66.67%	
52397	Other	1,166	4,335	3,000	1,785	3,000	3,000	0.00%	
	Total Services	146,710	196,425	189,296	204,660	244,541	339,800	79.51%	
	Supplies								
53110	Supplies & Equipment	12,451	14,872	14,500	11,855	14,500	14,500	0.00%	
	Total Supplies	12,451	14,872	14,500	11,855	14,500	14,500	0.00%	
	Total General & Administrative	595,263	693,618	431,373	395,988	497,031	598,801	38.81%	

Significant Variances Explanation:

(1) Increase due to addition of Special Projects Coordinator position and cost of living adjustments

(2) Increase to reflect actual costs of contract services; including audit, accountant, financial consultant, engineers

(3) Added budget line to reflect costs associated with sponsored special events, $70,000 offsetting revenue also included in budget

General Fund Expenditures
General Government Buildings & Plant - 15650

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Services & Supplies							
52120	Contract Services	-	3,274	10,000	6,194	10,000	10,000	0.00%
52220	Repairs & Maintenance	61,573	172,971	50,000	36,865	50,000	50,000	0.00%
53123	Utilities	40,383	20,016	42,000	18,942	34,000	35,000	-16.67%
	Total General Government Buildings & Plant	101,956	196,261	102,000	62,001	94,000	95,000	-6.86%
	Total General Government Buildings & Plant	101,956	196,261	102,000	62,001	94,000	95,000	-6.86%

General Fund Expenditures
Municipal Court - 265

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change	
	Personnel								
51100	Salaries & Wages	72,014	86,923	40,844	52,148	67,000	75,689	85.31%	
51210	Insurance Benefits	6,020	339	7,123	5,882	7,900	7,616	6.92%	
51220	FICA Taxes	5,347	4,098	3,125	3,063	5,125	5,790	85.28%	
51240	Retirement	4,699	5,194	4,876	3,561	4,876	9,198	88.64%	
	Total Personnel	88,080	96,554	55,968	64,654	84,901	98,293	75.62%	(1)
	Services								
52385	Contract Services	50,148	24,774	50,000	34,754	50,000	50,000	0.00%	
52321	Dues & Membership	301	525	500	400	500	500	0.00%	
52350	Travel / Training / Events	746	1,264	1,200	300	500	1,000	-16.67%	
52392	Other	277	39,730	1,000	331	500	500	-50.00%	
	Total Services	51,472	66,293	52,700	35,785	51,500	52,000	-1.33%	
	Supplies								
53110	Supplies & Equipment	4,909	5,642	4,500	3,811	5,000	5,000	11.11%	
	Total Supplies	4,909	5,642	4,500	3,811	5,000	5,000	11.11%	
	Total Municipal Court	144,461	168,489	113,168	104,250	141,401	155,293	37.22%	

Significant Variances Explanation:

(1) Increase for addition of part-time assistant clerk position, and code enforcement position moved from police budget to court

General Fund Expenditures
Police Department - 32000

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change	
	Personnel								
51100	Salaries & Wages	$ 433,290	$ 400,237	$ 462,454	$ 303,789	$ 463,000	$ 446,487	-3.45%	
51210	Insurance Benefits	109,537	97,041	94,451	66,451	97,041	86,752	-8.15%	
51220	FICA Taxes	37,253	32,681	35,378	22,020	35,420	34,157	-3.45%	
51240	Retirement	49,409	51,938	56,674	38,009	56,674	52,303	-7.71%	
	Total Personnel	629,489	581,897	648,957	430,269	652,135	619,699	-4.51%	
	Services								
52120	Contract Services	58,366	87,289	70,000	42,080	70,000	70,000	0.00%	
52221	Repairs & Maintenance	11,173	21,928	20,000	16,629	20,000	20,000	0.00%	
52322	Dues & Membership	1,800	436	2,000	145	2,000	2,000	0.00%	
52350	Travel / Training / Events	2,671	1,282	2,500	1,551	2,500	2,500	0.00%	
52397	Other	334	27	1,500	1,957	2,000	1,500	0.00%	
	Total Services	74,344	110,962	96,000	62,362	96,500	96,000	0.00%	
	Supplies								
53110	Supplies & Equipment	10,766	11,585	10,500	13,812	16,000	20,000	90.48%	(1)
53107	Ammunition / Range	636	317	1,500	1,000	1,500	1,950	30.00%	
53127	Fuel	22,441	25,090	25,000	20,853	25,000	25,000	0.00%	
	Total Supplies	33,843	36,992	37,000	35,665	42,500	46,950	26.89%	
	Total Police Department	737,676	729,851	781,957	528,296	791,135	762,649	-2.47%	

Significant Variances Explanation:

(1) Equipment budget increased for additional costs this budget cycle

General Fund Expenditures
Fire Department - 35000

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change	
	Personnel								
51100	Salaries & Wages	$ 339,970	$ 339,323	$ 353,239	$ 225,883	$ 335,000	$ 395,968	12.10%	
51210	Insurance Benefits	81,142	87,571	89,690	38,923	56,000	42,332	-52.80%	
51220	FICA Taxes	20,814	23,965	27,023	15,959	25,628	30,291	12.09%	
51240	Retirement	30,496	35,089	34,884	24,849	34,884	48,356	38.62%	
	Total Personnel	472,422	485,948	504,836	305,614	451,512	516,947	2.40%	(1)
	Services								
52385	Contract Services	7,448	14,605	10,000	10,315	20,000	15,000	50.00%	
52200	Repairs & Maintenance	22,681	22,897	30,000	22,120	30,000	30,000	0.00%	
52232	Vehicle / Equipment Lease(s)	6,749	4,180	-	-	-	-	0.00%	
52320	Utilities	16,315	24,031	16,500	9,026	15,000	16,500	0.00%	
52360	Dues & Membership	200	184	2,000	695	1,000	2,000	0.00%	
52370	Travel / Training / Events	855	151	3,000	150	500	3,000	0.00%	
	Other	3,655	821	500	-	-	500	0.00%	
	Total Services	57,903	66,869	62,000	42,306	66,500	67,000	8.06%	
	Supplies & Other Items								
53110	Supplies & Equipment	15,216	10,571	20,000	10,953	16,000	20,000	0.00%	
53127	Fuel	5,004	8,514	6,000	8,587	10,000	12,000	100.00%	
	Total Supplies	20,220	19,085	26,000	19,540	26,000	32,000	23.08%	
	Total Fire Department	550,545	571,902	592,836	367,460	544,012	615,947	3.90%	

Significant Variance Explanation:

(1) Changes in wages and benefits due to more part-time positions to replace full-time positions

General Fund Expenditures
Streets - 42010

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Personnel							
51100	Salaries & Wages	$ 169,121	$ 177,418	$ 56,174	$ 20,444	$ 37,500	$ 47,844	-14.83%
51210	Insurance Benefits	41,498	39,399	12,564	1,862	3,500	6,664	-46.96%
51220	FICA Taxes	12,047	12,769	4,296	2,362	2,750	3,662	-14.76%
51240	Retirement	18,796	20,487	7,665	18,727	21,000	18,989	147.74%
	Total Personnel	241,462	250,073	80,699	43,395	64,750	77,159	-4.39%
	Services							
52385	Contract Services	80,534	92,660	50,000	28,934	50,000	50,000	0.00%
52200	Repairs & Maintenance	3,674	2,794	23,500	4,579	10,000	23,500	0.00%
52320	Utilities	70,800	71,352	60,000	44,728	60,000	60,000	0.00%
52360	Dues & Membership	2,830	2,869	3,000	197	1,000	1,000	-66.67%
52370	Travel / Training / Events	1,000	397	1,500	2,216	2,500	1,500	0.00%
52324	Leases / Equipment Rental	534	89	3,000	896	1,000	3,000	0.00%
52386	Pavement Maintenance	2,375	75,300	100,000	-	100,000	100,000	0.00%
54145	Stormwater Maintenance	1,985	12,518	40,000	6,366	40,000	40,000	0.00%
52392	Other	15,717	3,325	5,000	1,640	3,500	5,000	0.00%
	Total Services	179,449	261,304	286,000	89,556	268,000	284,000	-0.70%
	Supplies & Other Items							
53110	Supplies & Equipment	8,467	19,339	18,000	9,477	10,500	18,000	0.00%
53127	Fuel	5,094	5,747	4,500	5,069	7,500	2,000	-55.56%
	Total Supplies	13,561	25,086	22,500	14,546	18,000	20,000	-11.11%
	Total Streets	434,472	536,463	389,199	147,497	350,750	381,159	-2.07%

General Fund Expenditures
Senior Center - 55000

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Services							
52385	Contract Services	$ 48,785	$ 48,458	$ 24,750	$ 18,478	$ 27,058	$ 25,000	1.01%
52200	Repairs & Maintenance	464	2,872	2,000	3,658	3,750	4,000	100.00%
52320	Utilities	6,794	6,828	7,000	5,253	7,000	7,000	0.00%
	Total Services	56,043	58,158	33,750	27,389	37,808	36,000	6.67%
	Supplies & Other Items							
53110	Supplies	2,181	2,724	2,000	787	1,000	2,000	0.00%
	Total Supplies	2,181	2,724	2,000	787	1,000	2,000	0.00%
	Total Senior Citizens	58,224	60,882	35,750	28,176	38,808	38,000	6.29%

General Fund Expenditures
Recreation - 61000

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Services							
52385	Contract Services	$ 2,102	$ 8,131	$ 7,500	$ 5,582	$ 7,500	$ 7,500	0.00%
52362	Repairs & Maintenance	470	3,835	15,000	9,426	15,000	15,000	0.00%
52320	Utilities	561	1,461	2,000	1,703	2,000	2,000	0.00%
	Total Services	3,133	13,427	24,500	16,711	24,500	24,500	0.00%
	Supplies & Other Items							
53111	Supplies	5	276	1,000	1,999	2,000	5,000	400.00%
	Total Supplies	5	276	1,000	1,999	2,000	5,000	400.00%
	Total Recreation	3,138	13,703	25,500	18,710	26,500	29,500	15.69%

General Fund Expenditures
Museum - 66000

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Services							
52385	Contract Services	$ 3,221	$ 4,156	$ 1,000	$ 1,023	$ 1,025	$ 1,000	0.00%
52200	Repairs & Maintenance	682	576	1,000	264	265	1,000	0.00%
52320	Utilities	4,664	4,547	1,000	1,097	1,500	1,000	0.00%
	Total Services	8,567	9,279	3,000	2,384	2,790	3,000	0.00%
	Supplies & Other Items							
53111	Supplies	230	-	-	-	-	-	0.00%
	Total Supplies	230	-	-	-	-	-	0.00%
	Total Museum	8,797	9,279	3,000	2,384	2,790	3,000	0.00%

General Fund Expenditures
Zoning Board / Commission - 74100

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Personnel							
51100	Salaries & Wages	$ 215	$ 215	$ 1,500	$ -	$ 1,500	$ 1,500	0.00%
	Total Personnel	215	215	1,500	-	1,500	1,500	0.00%
	Services							
52385	Contract Services	285	275	2,500	1,386	2,500	2,500	0.00%
52397	Dues & Membership	486	-	800	312	800	800	0.00%
52370	Travel / Training / Events	-	512	300	-	300	3,000	900.00%
	Total Services	771	787	3,600	1,698	3,600	6,300	75.00%
	Total Zoning Board / Commission	986	1,002	5,100	1,698	5,100	7,800	52.94%

General Fund Expenditures
Other Uses - 90000

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Other Uses							
	Debt service	2,277	-	-	-	-	-	0.00%
	Capital Savings - Fire Department		-	40,000	-	40,000	40,000	0.00%
	Capital Savings - Police Department		-	15,000	-	15,000	15,000	0.00%
	Capital Savings - Public Works		-	15,000	-	15,000	15,000	0.00%
	Capital Savings - Town Hall	-	-	30,000	-	30,000	30,000	0.00%
	Total Other Uses	2,277	-	100,000	-	100,000	100,000	0.00%
	Total General Fund Expenditures	$ 2,653,921	$ 2,999,288	$ 2,612,158	$ 1,680,825	$ 2,622,645	$ 2,819,924	7.95%

Capital Fund

Fund / Department Description:

The majority of the Town's capital purchases are infrastructure projects, building renovations or larger vehicle and equipment purchases that are not SPLOST or Utility fund related. These non-routine purchases deemed to be one-time expenditures and not SPLOST or Utility Fund related are accounted for in the Capital Fund. These purchases are financed through either current year General Fund budget surplus or General Fund unreserved fund balance.

In previous years, all capital purchases were accounted for in the General Fund operating budget. To better understand the recurring operational costs of the Town, management has separated capital purchases from the general fund. In order to effectively manage the replacement of these items, the condition, estimated useful life, and anticipated replacement dates for each asset will be reviewed by department heads each year. Based on this input, these items are then prioritized and incorporated in the annual capital budget in a way that attempts to manage the annual funding levels needed to replace these assets in a fiscally sustainable manner.

Capital Asset Policy: Capital assets are defined by the Town as assets with an initial cost of more than $1,000 for general capital assets and infrastructure assets, and an estimated useful life in excess of two years. All capital assets are valued at historical cost or estimated historical cost if actual amounts are unavailable.

Fund 350 - Capital Fund
Itemized List of Capital Requests

Account	Description	Amount
	Town Hall	
	Security Cameras	$ 20,000
	Computers	10,000
	Total Town Hall Capital Additions	30,000
	Police Department	
	Patrol Vehicle	$ 50,000
	Portable Radios	60,000
	Total Police Department Capital Additions	110,000
	Fire Department	
	Epoxy Bay Floors	$ 8,000
	Replacement of Bay Door Motors	5,000
	Portable Radios	65,000
	Building Upgrades & Remediation	35,000
	Total Fire Department Capital Additions	113,000
	Total Capital Additions	$ 253,000

Water / Sewer Utility Fund

Department Description:

The Water / Sewer Utility Fund is considered a proprietary fund. It accounts for the provision of water and sewer services to the residents of the Town. All activities necessary to provide such services are accounted for in this fund. Activities include providing high-quality drinking water, wastewater treatment and disposal services, and adequate water under sufficient pressure to our residents, businesses and visitors.

During fiscal year 2022, the Water / Sewer Utility had a rate study that resulted in adjustments to water / sewer rates. These adjustments are reflected in this budget.

Fund 505 - Water / Sewer Fund
Summary of Revenues & Expenses

Summary of Revenues

Source	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
Public Charges for Services	$ 1,208,172	$ 1,352,880	$ 1,320,000	$ 1,247,254	$ 2,031,500	$ 2,035,000	54.17%
Other Financing Sources	152	156	-	327	500	500	100.00%
Total Water / Sewer Fund Revenue	$ 1,208,324	$ 1,353,036	$ 1,320,000	$ 1,247,581	$ 2,032,000	$ 2,035,500	54.20%

Summary of Expenses

Department	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
Personnel	$ 244,140	$ 249,000	$ 487,574	$ 343,338	$ 509,935	$ 531,300	8.97%
Services	1,010,920	972,066	1,113,776	599,845	1,091,765	1,081,700	-2.88%
Supplies & Other Items	66,537	55,025	166,300	66,041	169,300	152,500	-8.30%
Capital & Depreciation	145,909	187,089	261,000	100,000	261,000	270,000	3.45%
Total Water / Sewer Fund Expenses	$ 1,467,506	$ 1,463,180	$ 2,028,650	$ 1,109,224	$ 2,032,000	$ 2,035,500	0.34%
Increase / (Decrease) in Equity	$ (259,182)	$ (110,144)	$ (708,650)	$ 138,357	$ -	$ -	
Beginning Cash Balance	$ 250,643	$ 104,612	$ 164,366	$ 164,366	$ 164,366	$ 164,366	
Adjustments to "accrual" basis:							
Adjustments for accruals	29,530	169,898	-	-	-	-	
Capital Contributions	83,621	-	-	-	-	-	
Applied Budget Surplus	-	-	-	-	-	-	
Ending Cash Balance	$ 104,612	$ 164,366	$ (544,284)	$ 302,723	$ 164,366	$ 164,366	

Fund 505 - Water / Sewer Fund
Revenues

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Public Charges for Services							
44215	Water Rents	$ 329,855	$ 369,167	$ 352,000	$ 421,664	$ 575,000	$ 575,000	63.35%
44236	Sewer Rents	807,630	899,018	890,000	752,433	1,350,000	1,350,000	51.69%
38907	Water / Sewer Penalties	28,223	44,009	38,000	49,577	60,000	65,000	71.05%
38100	Equipment Rental	41,894	40,686	40,000	22,133	45,000	45,000	12.50%
38900	Miscellaneous	570	-	-	1,447	1,500	-	100.00%
	Total Public Charges for Services	1,208,172	1,352,880	1,320,000	1,247,254	2,031,500	2,035,000	54.17%
	Other Financing Sources							
36100	Investment Income	152	156	-	327	500	500	100.00%
	Total Other Financing Sources	152	156	-	327	500	500	100.00%
	Total Water / Sewer Revenues	$ 1,208,324	$ 1,353,036	$ 1,320,000	$ 1,247,581	$ 2,032,000	$ 2,035,500	54.20% (1)

Significant Variances Explanation:

(1) Reflects full year of rate adjustments approved in fiscal year 2022

Fund 505 - Water / Sewer Fund
Expenses

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change	
	Personnel								
51117	Wages & Benefits allocated from GF	$ 244,140	$ 249,000	$ 475,429	$ 332,129	$ 487,574	$ 498,653	4.88%	
	Workers Compensation	-	-	12,145	11,209	22,361	32,647	200.00%	(1)
	Total Personnel	244,140	249,000	487,574	343,338	509,935	531,300	8.97%	
	Services								
52385	Contract Services	73,508	89,169	90,500	138,667	150,000	125,000	38.12%	(2)
52391	Purchased Water	91,025	41,620	90,500	55,501	85,000	85,500	-5.52%	
52221	Repairs & Maintenance	55,426	35,062	11,000	3,317	11,000	15,000	36.36%	
52203	Sewer Treatment	768,115	778,943	880,000	361,188	800,000	800,000	-9.09%	
52310	Property & Liability Insurance	20,277	23,930	30,476	32,515	32,515	46,200	51.59%	(3)
52324	Equipment Rental	-	-	8,000	975	4,000	4,000	-50.00%	
52370	Travel / Training / Events	1,825	1,087	2,500	6,239	7,500	5,000	100.00%	
52360	Dues & Membership	497	800	800	858	1,000	1,000	25.00%	
52392	Other	247	1,455	-	585	750	-	0.00%	
	Total Services	1,010,920	972,066	1,113,776	599,845	1,091,765	1,081,700	-2.88%	
	Supplies & Other Items								
53113	Supplies & Equipment	26,463	12,032	122,500	37,338	122,500	105,000	-14.29%	
53123	Utilities	40,074	42,993	41,800	28,703	41,800	41,500	-0.72%	
53127	Fuel	-	-	2,000	-	5,000	6,000	200.00%	
	Total Supplies & Other Items	66,537	55,025	166,300	66,041	169,300	152,500	-8.30%	
	Capital & Depreciation								
	Capital Improvement Program	-	-	91,000	-	91,000	100,000	100.00%	
	Water Conservation Program	-	-	20,000	-	20,000	20,000	100.00%	
	Depreciation	145,909	187,089	150,000	100,000	150,000	150,000	100.00%	
	Total Capital & Depreciation	145,909	187,089	261,000	100,000	261,000	270,000	100.00%	
	Total Water / Sewer Expenses	1,467,506	1,463,180	2,028,650	1,109,224	2,032,000	2,035,500	0.34%	

Significant Variances Explanation:

(1) Increase to properly reflect Water / Sewer Utility allocation of workers compensation cost

(2) Increase to reflect allocation of audit, accountants and consultants cost not previously allocated to Utility

(3) Increase to reflect allocation of audit, accountants and consultants cost not previously allocated to Utility

Solid Waste Fund

Department Description:

The Solid Waste Fund is considered a proprietary fund. The Solid Waste Fund accounts for the provision of sanitation collection services to the residents of the Town. The Town contracts out the garbage collections of residential and commercial customers with a 3rd party to provide solid waste collection services. All activities necessary to provide such services are accounted for in this fund. The Town charges a per cart fee for monthly service.

Deficits are supplemented by the General Fund.

Fund 540 - Solidwaste Fund
Summary of Revenues & Expenses

Summary of Revenues

Source	2020 Actual	2021 Actual	2022 Actual	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
Public Charges for Services	$ 281,649	$ 289,967	$ 282,000	$ 217,118	$ 285,000	$ 285,000	1.06%
Total Solidwaste Fund Revenue	$ 281,649	$ 289,967	$ 282,000	$ 217,118	$ 285,000	$ 285,000	1.06%

Summary of Expenses

Department	2020 Actual	2021 Actual	2022 Actual	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
Personnel	$ 32,610	$ 32,000	$ 13,114	$ 8,193	$ 13,114	$ 14,545	10.91%
Services	270,979	256,174	272,228	192,279	271,805	294,755	8.28%
Total Solidwaste Fund Expenses	$ 303,589	$ 288,174	$ 285,342	$ 200,472	$ 284,919	$ 309,300	8.40%
Increase / (Decrease) in Equity	$ (21,940)	$ 1,793	$ (3,342)	$ 16,646	$ 81	$ (24,300)	
Beginning Cash Balance	$ (29,406)	$ (51,346)	$ (49,553)	$ (49,553)	$ (49,553)	$ (49,472)	
Adjustments to "accrual" basis:							
Adjustments for accruals	-	-	-	-	-	-	
Capital Contributions	-	-	-	-	-	-	
Applied Budget Surplus	-	-	-	-	-	-	
Ending Cash Balance	$ (51,346)	$ (49,553)	$ (52,895)	$ (32,907)	$ (49,472)	$ (73,772)	

Fund 540 - Solidwaste Fund
Revenues

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change
	Public Charges for Services							
34411	Garbage Fees	$ 281,649	$ 289,967	$ 282,000	$ 217,118	$ 285,000	$ 285,000	1.06%
	Total Public Charges for Services	281,649	289,967	282,000	217,118	285,000	285,000	1.06%
	Total Solidwaste Revenues	$ 281,649	$ 289,967	$ 282,000	$ 217,118	$ 285,000	$ 285,000	1.06%

Fund 540 - Solidwaste Fund
Expenses - 45000

Account	Account Name	2020 Actual	2021 Actual	2022 Budget	8/31/22 YTD	2022 Projected	2023 Budget	Budget % Change	
	Personnel								
51117	Wages & Benefits allocated from GF	$ 32,610	$ 32,000	$ 13,114	$ 8,193	$ 13,114	$ 14,545	10.91%	
	Total Personnel	32,610	32,000	13,114	8,193	13,114	14,545	10.91%	
	Services								
52385	Contract Services	263,498	248,392	263,000	183,474	263,000	289,300	10.00%	(1)
52310	Property & Liability Insurance	6,490	7,315	8,728	8,805	8,805	5,455	-37.50%	
52392	Miscellaneous	991	467	500	-	-	-	0.00%	
	Total Services	270,979	256,174	272,228	192,279	271,805	294,755	8.28%	
	Total Solidwaste Expenses	303,589	288,174	285,342	200,472	284,919	309,300	8.40%	

Significant Variances Explanation:

(1) Per cart fees increased 10% from $19 to $21

Summary of Expenses Allocated to Utility Funds

Description	Total Cost	General Fund	Water / Sewer Fund	Solidwaste Fund
General Administrative Salaries & Benefits	$ 416,049	$ 171,459	$ 230,998	$ 13,592
Public Works Salaries & Benefits	$ 283,539	$ 58,171	$ 225,368	$ -
Retirement	$ 176,981	$ 133,478	$ 42,471	$ 1,032
Workers Compensation Insurance	$ 93,500	$ 55,320	$ 32,725	$ 5,455
Property & Liability Insurance	$ 132,000	$ 85,800	$ 46,200	$ -

% Allocation to Utilities			
Description	2022 Budget	2023 Budget	Change
Town Administrator	55%	55%	-
Special Projects Coordinator	NA	50%	50%
Clerk of Council	0%	20%	20%
Inspector	0%	50%	50%
Utility Billing Manager	85%	85%	-
Utility Clerk	95%	95%	-
PW Manager	85%	85%	-
Maintenance Worker	25%	25%	-
Maintenance Worker	85%	85%	-
Sr Water Tech / Wastewater	85%	85%	-
Wastewater Tech	85%	85%	-
Retirement	57%	60%	3%
Workers Compensation Insurance	14%	35%	21%
Property & Liability Insurance	32%	35%	3%

TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, OCTOBER 12, 2022
6:00 PM
REVISED

AGENDA HEARING

Public has three minutes per person to ask questions or comment on any agenda item.

Mayor Williams welcomed everyone and reminded this is open time for any questions for what is on the agenda.

Stella Lavin, 3121 Robertson Ave, asked about the composting initiative. Town Administrator Milie explained it is a 90 day trail. The composting will be picked up once a week. This is a trial to see if there is a benefit to the town.

Beth Goette, 3006 Leonard St., first question was about the clock on the Victory Drive. She asked if we contacted GDOT. Town Clerk Denion stated it is not in their right-of-way but up on the property. Mrs. Goette asked about ownership. Town Clerk Denion explained it was recently sold to Mr. Horton. Mrs. Goette then asked about the if the owners have been contacted about the composting trial. Town Administrator Milie stated they have not. Staff are first trying to identify the specific location. Mrs. Goette asked if the owners have been contacted about the rezoning. Town Administrator Milie explained this is the first step. They will be notified before the P & Z meeting.

Jan Yarbrough, 24 Bonaventure Rd. Discussion on River Dr vs. Victory Dr. If the rezoning process is to be used. Town Attorney Barrow explained if Council decides to go forth, the process will be followed.

Council Member Lavin asked about the finances for the Christmas Parade. Town Administrator Milie explained the funding is in the budget for this event. They are not seeking sponsors. Council Member Lavin asked about the cost of the meters. He was under the impression it was less than the amount shown in the packet. Town Administrator Milie explained this is a long-range project. The warranty has run out on the current meters. We need to purchase meters and they will be replaced with this new meter with new software on an as needed.

Council Member Drohan spoke on the Thunderbolt Utilization Project. This project is specifically focusing on water and sewer. The collected data will help make good decisions on development projects. Town Administrator Milie explained the breakdown of the data spreadsheets. They are broken down into zones. Once completed, we will have a net number for water and sewer.

Jan Yarbrough – Victory Drive Properties – would it be possible to get more information for the items before the meeting. It was explained the packet of information is not complete until Monday or Tuesday before the meeting. Anyone can ask for back up information though the Town Clerk. Council Member Drohan stated a summary could be added to the agenda.

Mayor Williams closed the open hearing time at 6:38 pm.

REGULAR MEETING

1. **Call to order**

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Mayor Williams called the meeting to order at 6:38 pm

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

Those in attendance were Mayor Williams and Council Members Dave Crenshaw, Ed Drohan, Larry Ward, James Lavin, Bethany Skipper-Greer and Brooks Barbaree. Staff in attendance were: Town Administrator, Bob Milie; Town Attorney, Charlie Barrow; Town Clerk, Deatre Denion; Accts Payable/Utility Manager, Katina Spaulding; Police Chief, Sean Clayton and Public Works Manager, Oscar Crosby.

3. **Approval of Meeting Agenda**

Mayor Williams asked for a motion to approve the agenda. **Council Member Ward made the motion with a second from Council Member Drohan.**

4. **Approval of Minutes from Previous Meeting**:
Minutes of September 14, 2022

Mayor Williams asked for a motion to approve the September 14, 2022 meeting minutes. **Council Member Ward made the motion with a second from Council Member Drohan. The motion passed unanimously.**

5. **Presentations:**

a) Recognition of Sue Derosa
b) Finance Report
Shannon Brett, HBBD, explained they have wrapped up September. They continue to look at the coding of allocations. The 3rd quarter payroll filing was completed. Revenue is at 90% and expenses are at 65%.

6. **Planning & Zoning Public Hearing**
a) **Petitioner:** Ronald Horton
Request: Variance for location of clock
Request: Approval to have the clock
Parcel Involved: 3-0004-01-004
Location: 3114 E. Victory Dr
P & Z unanimously approved

Town Clerk Denion explained Mr. Horton is traveling and could not be here tonight. She explained Mr. Horton wishes to use a clock as his business sign. The current regulations for signs are 50 feet off the property line. The building is not 50 feet off the property. Mayor Williams asked what kind of business does Mr. Horton have. Town Clerk Denion explained he is an antique clock seller and repair. Stella Lavin asked what was the variance. Town Clerk Denion explained they need a variance to have it 15 feet off the property line. Town Administrator Milie informed Council, Mr. Horton told staff the build board on his property will not be renewed and will be removed. **Council Member Drohan made the motion to approve with second by Council Member Ward. There was no discussion. The motion passed unanimously.**

7. **Consent Agenda:**
a) Approval of COR Composting Contract – This is a 90-day trial composting pilot program on Woodlawn to test if our residents utilize the service, then subsequently use less water and wear and tear on infrastructure. Minimal Cost – funding available – water conservation budget – Staff Recommends Approval.

b) Approval of Secondary Disaster Hauler, Crowder Gulf Contract – Staff Recommends Approval.

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c) Approval of Consolidated Pipe Contract – This is sole sourced due to the software used. This is part of a 10-year plan to make reading of water meters an inside computer system. Funding is available via W & S budget and was budgeted. – Staff Recommends Approval.

d) Approval of Fire Department Mutual Aid Contracts – These are codifying existing state Georgia Mutual Aid Agreement within county, municipalities for the new dispatching center system task. Non-financial, already existing. Staff Recommends Approval.

e) Approval of ARPA Budget – Council voted at the June meeting to utilize the ARPA funding towards payroll under the guidance of the state, GMA, and our CPA firm. This codifies the budget now as all money received and allocates the funding for the designated purpose. Staff Recommends Approval.

f) Approval of the Purchase of Overhead Bay Doors from Action Overhead Doors for Department of Public Works. This is sole sourced as only two companies do the commercial work necessary and Public Works switched due to previous production and repair issues. Staff Recommends Approval.

g) Approval of Christmas on the Bluff Festival Event Contract with Simply Savannah. Christmas on the Bluff 2022 will include a Boat Parade, Parade, Holiday Season Vendors, Music, etc. – Staff Recommends Approval.

h) Approval of the Shriner Parade on November 12, 2022 starting at 10:30 am.

Mayor Williams asked for a motion to approve the consent agenda. **Council Member Drohan made the motion to approve consent agenda as written with a second from Council Member Crenshaw. The motion passed unanimously.**

8. **Discussion Agenda:**

a) Discussion on rezoning parcels from Victory Drive District to River Drive District – This is to decide if Council wants to start the rezoning process of two parcels in Victory Drive District should be in River Drive District. Staff Recommends Approval to Start Process.

Council Member Drohan made motion to send it to P & Z with a second by Council Member Skipper-Greer. The motion passed unanimously.

b) Approval of the Right-of-Way Lease to Release Marine – There is no cost to the Town, improves stormwater run-off in the area. There will be a small financial revenue source for Town. Staff Recommends Approval.

Council Member Ward made a motion to approve with a second from Council Member Drohan. Council Member Drohan asked Town Administrator Milie to explain this lease to the public. Town Administrator Milie explained Roger Lacey does not connect to Shell but the Town has the right-of-way all the way through. A business approached the Town to purchase or lease in order to increase the required parking needed with the building expansion they have planned. It was decided to lease, not sell. Council Member Crenshaw asked the length of contract. Town Attorney Barrow stated it is four years but there is a kill clause. Council Member Skipper-Greer asked it is only for parking. Town Clerk Denion explained they wish to add on to the current building. The addition requires more parking spaces. **The motion passed unanimously.**

9. **Town Administrator Report:** Town Administrator, Bob Milie

Looking at FY 22 budget to achieve goals and create FY23 budget. Ian was an excellent exercise. Mayor stated it went seamlessly from County on down.

10. **Department Report –** Written Reports Submitted

DRAFT

by: Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police

Council Member Crenshaw asked if Blue Line was live. Chief Clayton stated it has been live since September 6th. Mayor Williams asked about the proactive response the Police Departments have started implementing. Chief Clayton explained juveniles that are not affiliated with a gang and go into the system become a part of a gang. They are trying to keep those kids out of the system. Police are staying proactive and working with the DA office to intervene with those juveniles.

Fire –Fire Chief, Andrew Bateman -

Chief Bateman was not in attendance due to a family emergency. Town Administrator Milie reported the addition for the firehouse has completed the painting and electrical. The floors are next. Council Member Skipper-Greer stated even with a miss from Ian, everyone was ready and appreciated their efforts.

Public Works Department – Oscar Crosby, Public Works Manager –

Council Member Drohan asked what was going on at Thomson Park. Town Administrator Milie explained irrigation was put in. Public Manager Crosby explained the Mechanics Ave beautification will be completed by November and a valve will be added to the water line on Shell Road.

11. **Legal Report – Town Attorney**

12. **Mayor and Council –**

    a) TDRUP Ad hoc Committee Council Member Drohan
    b) Thunderbolt Museum Report

Anna Maria Thomas told Council the museum fund raiser was excellent. There is another sell Oct. 29th and Dec. 10th. The museum is open Wed and Tues. 10 to 2 pm. Museum hopes to participate in the Christmas on the Bluff. Council Member Skipper-Greer asked was there an estimate of the number of people. About 100.

Mayor Williams asked for a motion to adjourn into executive session. **Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

13. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal, Real Estate and/or Personnel matters.

Mayor Williams asked for motion to adjourn Executive Session. **Council Member Crenshaw made the motion with a second from Ward. The motion passed unanimously.** Mayor Williams asked for a motion to reconvene into the regular session. **Council Member Drohan made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

Mayor Williams reminded everyone the Thunderbolt polling location will be at the Senior Citizen Building.

Mayor Williams asked for a motion to adjourn. **Council Member Drohan made the motion with a second from Council Member Ward. The motion passed unanimously.**

14. **Adjournment:**

The meeting adjourned at 7:23 pm.

DRAFT

Town of Thunderbolt
10/31/2022

	Line Item	BUDGET FY 2022	Amendment	Final Admendment	Amended Budget 2022	Actuals Year to Date	YTD %
REVENUES							
Taxes	**031**	2,218,000	-	-	2,218,000	2,163,449	98%
Licenses and Permits	**032**	101,500	-	-	101,500	114,199	113%
Intergovernmental Revenue	**033**	30,000	-	-	30,000	14,102	47%
Charges for Services	**034**	61,358	-	-	61,358	70,499	115%
Fines & Forfeitures	**035**	163,300	-	-	163,300	142,005	87%
Miscellaneous Revenue	**038**	38,000	-	-	38,000	147,211	387%
Water/Sewer	**400**	1,320,000	-	-	1,320,000	1,607,405	122%
Solidwaste	**540**	282,000	-	-	282,000	242,040	86%
Other Income	**038**	0	-	-	-	1,044	0%
SPLOST	**320**	716,153	-	-	716,153	622,496	87%
SUBTOTAL REVENUES		**4,930,311**	**-**	**-**	**4,930,311**	**5,124,450**	**104%**
ARPA	**033**	-	-	-	-	489,762	0%
TOTAL REVENUES		**4,930,311**	**-**	**-**	**4,930,311**	**5,614,212**	**114%**
EXPENSES							
Mayor And Council	**130**	32,953	-	-	32,953	28,704	87%
General Administrative	**150**	319,064	-	-	319,064	337,921	106%
General Govt Bldgs & Plant	**156**	64,000	-	-	64,000	50,882	80%
Police	**300**	859,431	-	-	859,431	720,451	84%
Municipal Court	**265**	119,466	-	-	119,466	133,575	112%
Fire	**350**	628,196	-	-	628,196	478,123	76%
Streets	**400**	417,271	-	-	417,271	214,063	51%
Senior Citizens	**550**	37,513	-	-	37,513	32,361	86%
Recreation	**610**	25,841	-	-	25,841	26,494	103%
Thunderbolt Museum	**660**	3,323	-	-	3,323	2,709	82%
Zoning Board/Commission	**741**	5,100	-	-	5,100	1,832	36%
Capital Savings		100,000	-	-	100,000	-	0%
Capital Additions		0	-	-	0	-	0%
Water/Sewer	**400**	2,028,650	-	-	2,028,650	1,339,231	66%
Solidwaste	**540**	285,342	-	-	285,342	248,760	87%
SPLOST	**320**	232,580	-	-	232,580	99,521	43%
ARPA		-	-	-	-	-	0%
TOTAL EXPENSES		**5,158,730**	**-**	**-**	**5,158,730**	**3,714,627**	**72%**

(DEFICIT) SURPLUS		(228,419)			(228,419)	1,899,585	

2022 Budget:

GEN Fund Revenue:		$ 2,612,158	ENT Fund Revenue:		$ 1,602,000	Town Revenue:	$ 4,930,311
Expenses:	G&A	319,064	Expenses	Water/Sewer	2,028,650		
	M&C	32,953		Garbage	285,342		
	GEN GOV	64,000					
	PD	859,431	Expenses	Total:	$ 2,313,992		
	Mun Crt.	119,466					
	FD	628,196			$ (711,992)		
	Streets	417,271					
	Sen Cit	37,513	SPLOST	Revenue	716,153		
	REC	25,841		Expenses	232,580		
	Mus	3,323					
	P&Z	5,100					
	CAP SAV	100,000					
Expenses	Total:	$ 2,612,158		Net	483,573	Total Expense	$ 5,158,730
	Net	$ -			$ (228,419)	(Deficit) Surplus/Contingency	$ (228,419)

2022 Actuals: (Cash Flow)

			ACT vs BUD				ACT vs BUD		
GEN Fund Revenue:		$ 2,651,465	$ 39,307	ENT Fund Revenue:		$ 1,850,489	$ 248,489	Town Revenue:	$ 5,614,212
Expenses:	G&A	337,921	18,857	Expenses	Water/Sewer	1,339,231	(689,419)		
	M&C	28,704	(4,249)		SolidWaste	248,760	(36,582)		
	GEN GOV	50,882	(13,118)				-		
	PD	720,451	(138,980)	Expenses	Total:	$ 1,587,991	$ (726,001)		
	Mun Crt.	133,575	14,109						
	FD	478,123	(150,073)		Net W/S	$ 262,497	$ 974,489		
	Streets	214,063	(203,208)						
	Sen Cit	32,361	(5,152)	SPLOST	Revenue	622,496	(93,657)		
	REC	26,494	653		Expenses	99,521	(133,059)		
				ARPA	Revenue	489,762	489,762		
					Expenses	-	-		
	Mus	2,709	(614)						
	P&Z	1,832	(3,268)						
Expenses	Total:	$ 2,027,115	$ (585,043)		Net SPLOST & ARPA	$ 1,012,738	$ 529,165	Total Expense	$ 3,714,627
	Net General	$ 624,350	$ 624,350			$ 1,899,585	$ 2,128,004	Surplus/Contingency	$ 1,899,585

Town Of Thunderbolt Cash Status: October 2022

Bank Account	Beginning Balance	Cash IN		Cash OUT		Ending Balance	Net Change
General Fund	$ 1,561,937	$ 3,214,927		$ (3,077,941)		$ 1,698,923	$ 136,986
Water Sewer Fund	166,262	1,843,164		(910,388)		1,099,038	932,777
Municipal Court	66,737	175,230		(239,396)		2,571	(64,166)
MC Cash Bond	31,564	37		(5,700)		25,901	(5,663)
Money Market Contingency	10,000	3,027,308		(7)		3,037,300	3,027,300
SPLOST Capital Projects	723,121	622,496		(60,141)		1,285,476	562,355
Special Projects	1,433	1		-		1,434	1
P.D. Asset	5,470	8		-		5,477	8
ARPA	-	489,762		-		489,762	489,762
	$ 2,566,522	$ 9,372,934	$ -	$ (4,293,573)	$ -	7,645,883	$ 5,079,360

COMMERCIAL LEASE AGREEMENT
(Single-Tenant Facilities)

2022 Printing

In consideration of the mutual covenants set forth herein, this Lease (hereafter the term "Lease" and "Agreement" are used interchangeably) is entered into this date of Dec. 1st, 2022 between THE TOWN OF THUNDERBOLT (hereinafter "Landlord") and THUNDERBOLT MUSEUM SOCIETY (hereinafter "Tenant").

Landlord leases to Tenant, and tenant leases from Landlord the Property with the following address: 2701 Mechanics Ave, Thunderbolt, Georgia 31404. TAXPIN/ID# Modified- 30004 12021 and is more particularly described in the Legal Description Paragraph below:

Legal Description: The legal description of the Property is attached as an exhibit hereto and incorporated herein.

1. **Term:** The initial term of this lease shall be for 12 months beginning on 1/1/2023 ("Commencement Date"), through and including the date of 12/31/2023.

2. **Possession**. If Landlord is unable to deliver possession of Property on the Commencement Date, rent shall be abated on a daily basis until possession is granted. If possession is not granted within fourteen (14) days from the Commencement Date, Tenant may terminate this Lease in which event Landlord shall promptly refund all payments and deposits to Tenant. Landlord shall not be liable for delays in the delivery of possession to Tenant.

3. **Rent:** Tenant shall pay base rent to Landlord without demand, deduction, or setoff in advance in the sum of $500.00 Dollars per month on the first day of Jan., 2023 during the Lease or any renewals thereof, at the following address: 2821 River Drive, Thunderbolt, GA 31404. (or at such other address as may be designated from time to time by Landlord in writing.) If the Commencement Date begins on the second day through the last day of any month, the rent shall be prorated for that portion of the month and shall be paid at the time of leasing Property. Tenant shall also pay additional rent as may be provided elsewhere in this lease. Such additional rent shall be paid in the same manner as the base rent.
4. **Late Payment: Service Charge for Returned Checks:** Rent not paid in full by the fifth day of the month shall be late. Landlord shall have no obligation to accept any rent not received by the fifth of the month. If late payment is made and Landlord accepts the same, the payment must be in the form of cash, cashier's check or money order and must include an additional rent amount of $10% and, if applicable, a service charge for any returned check of $100.00. Landlord reserves the right to refuse to accept personal checks from Tenant after one or more of Tenant's personal checks have been returned by the bank unpaid.
5. **Security Deposit.**
   A. Security Deposit to be Held by Landlord or Broker: [*Check one. The section not marked shall not be a part of this Agreement.]*
   Landlord Holding Security Deposit:
   1. Tenant has paid to Landlord as security for Tenant's fulfillment of the conditions of this Lease a security deposit of N/A Dollars in cash, money order, and/or check ("Security Deposit").
   2. Landlord shall deposit the Security Deposit in Landlord's general account with Landlord retaining the interest if the account is interest bearing. Tenant acknowledges and agrees that Landlord shall have the right to use such funds for whatever purpose Landlord sees fit, and such funds will not be segregated or set apart in any manner.

3. Tenant recognizes and accepts the risk of depositing the Security Deposit with Landlord. Tenant acknowledges that Tenant has not relied upon the advise of any Broker in deciding to pay such Security Deposit to Landlord. Landlord and Tenant acknowledge and agree that:
    a. Broker has no responsibility for, or control over, any Security Deposit deposited with Landlord;
    b. Broker has no ability or obligation to insure that the Security Deposit is properly applied or deposited;
    c. The disposition of the Security Deposit is the sole responsibility of Landlord and Tenant as herein provided; and
    d. Landlord and Tenant agree to indemnify and hold harmless Broker and Broker's affiliated licensees against all claims, damages, losses, expenses or liability arising from the handling of the Security Deposit by Landlord.
4. Landlord shall return Security Deposit to Tenant, after deducting any sum which Tenant owes Landlord hereunder, or any sum which Landlord may expend to repair arising out of or related to Tenant's occupancy hereunder, abandonment of Property or default in this Lease (provided Landlord attempts to mitigate such actual damages), including but not limited to any repair, replacement, cleaning or painting of Property reasonably necessary due to the negligence, carelessness, accident, or abuse of Tenant or Tenant's employees, agents, invitees, guests, or licensees. In the event Landlord elects to retain any part of the Security Deposit, Landlord shall promptly provide Tenant with a written statement setting forth the reasons for the retention of any portion of the Security Deposit, including the damages for which any portion of the Security Deposit is retained. The use and application of the Security Deposit by Landlord shall be at the discretion of the Landlord. Appropriation by Landlord of all or part of the Security Deposit shall not be an exclusive remedy for Landlord, but shall be cumulative, and in addition to all remedies of Landlord at law or under this Lease. The Tenant may not apply the Security Deposit to any rent payment.

Broker Holding Security Deposit:

1. Tenant has paid Broker as security for Tenant's fulfullment of the conditions of this Lease ("Security Deposit") $NA Dollars in cash, money order, and/or **check**.
2. The Broker shall deposit the Security Deposit in Broker's escrow/trust account (with Broker retaining the interest if the account is interest bearing) within five (5) banking days from the Binding Agreement Date.
3. Broker shall disburse the Security Deposit only as follows: (a) upon the failure of the parties to enter into a binding lease; (b) upon a subsequent written agreement signed by all parties having an interest in the funds; (c) upon order of a court or arbitrator having jurisdiction over any dispute involving the security deposit; (d) upon a reasonable interpretation of this Agreement by Broker; (e) as provided in the General Provisions section below of this Paragraph; or (f) upon the termination of the agency relationship between Landlord and Broker, in which event Broker shall only disburse the Security Deposit, to another licensed Georgia Real Estate Broker selected by Landlord unless otherwise agreed to in writing by Landlord and Tenant after notice to Broker and Tenant. Prior to disbursing the Security Deposit pursuant to a reasonable interpretation of this Agreement; Broker shall give all parties fifteen (15) days notice, stating to whom the disbursement will be made. Any party may object in writing to the disbursement, provided the objection is received by Broker prior to the end of the fifteen (15) day notice period. All objections not raised in a timely manner, shall be waived. In the event a timely objection is made, Broker shall consider the objection and shall do any or a combination of the following: (a) hold the Security Deposit for a reasonable period of time to give the parties an opportunity to resolve the dispute; (b) disburse the Security Deposit and so notify all parties; and/or (c) interplead the Security Deposit into a court of competent jurisdiction. Broker shall be reimbursed for and may deduct from any funds interpleaded its costs and expenses, including reasonable attorney's fees. The prevailing party in the interpleader

action shall be entitled to collect from the other party the costs and expenses reimbursed to Broker. No party shall seek damages from Broker (nor shall Broker be liable for the same) for any matter arising out of or related to the performance of Broker's duties under this Security Deposit paragraph.

B. General Provisions Regarding Security Deposit:

1. In the event any Security Deposit check is not honored, for any reason, by the bank upon which it is drawn, the holder thereof shall promptly notify the other parties and Broker(s) to this Lease. Tenant shall have three (3) banking days after notice to deliver good funds to the holder. In the event Tenant does not timely deliver good funds to the holder, the Landlord shall have the right to terminate this Agreement upon written notice to the Tenant.
2. The entire Security Deposit, if held by Landlord, will be returned to Tenant within thirty (30) days after Property is vacated if: (a) The term of the Lease has expired or the Lease has been terminated in writing by the mutual consent of both parties; (b) All monies due under this Lease by Tenant have been paid; (c) Property is not damaged and is left in its original condition, normal wear and tear excepted; (d) All keys have been returned; and (e) Tenant is not in default under any of the terms of this Lease.

6. Repairs and Maintenance. Tenant acknowledges that Tenant has inspected Property and that it is fit for its stated use. Tenant agrees that no representations regarding Property or the condition thereof and no promises to alter, decorate, improve, or repairs have been made by Landlord, Broker, or their agents unless specified in this Lease. The following shall be kept in good working order and repair, normal wear and tear expected, by either the Landlord or Tenant as follows: *[Check all that apply. The sections not marked shall not be a part of this Agreement.]*

	TENANT	LANDLORD		TENANT	LANDLORD
Heating system	☑	☐	Elevators	☑	☐
Plumbing system	☑	☐	Air conditioning system	☑	☐
Parking area	☐	☑	Electrical system/fixtures	☑	☐
Driveway	☐	☑	Exterior walkways	☑	☐
Building Exteriors	☑	☐	Interior hallways	☑	☐
Smoke detector	☑	☐	Lobby	☑	☐
Terrace/patio	☑	☐	Loading Area	☑	☐
Restrooms	☑	☐	Trash Facilities	☑	☐
Stairs	☑	☐	Landscaping	☑	☐
Exterior windows	☑	☐	Other		☐
Security Alarm	☑	☐	Other		☐

Any item not mentioned herein by existing on Property (other than furniture, fixtures, and equipment of Tenant shall be maintained by the Tenant.

Upon receipt of written notice from Tenant, Landlord shall, within a reasonable time period thereafter, repair all defects in those facilities and systems that are the responsibility of Landlord to maintain in good working order and repair. If Tenant does not promptly perform its maintenance and repair obligations as set forth herein, Landlord may make such repairs and/or replacements and Tenant shall promptly pay the costs of the same. Landlord shall not be liable to Tenant for any damage caused by any of the above referenced systems or facilities or by water coming through or around the roof or any door, flashing, skylight, vent, window, or the like in or about Property, except if such damage is due to the gross negligence or willful misconduct of Landlord. Tenant shall be responsible for the reasonable costs of repairs made necessary by the negligence or willful misconduct of Tenant (including Tenant's employees, agents, invitees, guests, or licensees).

7. **Services.** Landlord shall provide, at Landlord's expense the following services:

[Check all that apply. The sections not marked shall not be a part of this Agreement.]

☐ General Cleaning and janitorial service of the interior of the Property ___ times per week

☐ Concierge service as follows: _____

☐ Parking attendant as follows: _____

☐ Property Monitor as follows: _____

☐ Trash Collection ____ times per week

☐ Soap, paper towels, and toilet tissue for restrooms _____ times per week

☐ Replacement of all light bulbs and repair and maintenance of all light fixtures located in the interior of Property

Landlord shall not be liable for the nonperformance or inadequate performance of such services by third parties. Tenant shall be responsible for the costs and provision of any services that Landlord has not expressly agreed to pay for in this Lease. Tenant agrees to provide services not provided by Landlord that are necessary to keep Property in good order, condition, and repair, normal wear and tear excepted. If Tenant does not provide such services, Landlord may then provide such services and Tenant shall promptly pay Landlord the costs for such services.

8. **Utilities.** The services and/or utilities set forth below serving Property shall be paid by either the Landlord or Tenant as follows:

[Check all that apply. The sections not marked shall not be a part of this Agreement.]

UTILITY	TENANT	LANDLORD	UTILITY	TENANT	LANDLORD
Water	☑	☐	Sewer	☑	☐
Electricity	☑	☐	Natural Gas	☑	☐
Garbage	☑	☐	Cable Television	☑	☐
Telephone	☑	☐	Digital Subscriber Line	☑	☐
Other	☐	☐	Other	☐	☐

Tenant shall be responsible for the costs of any utilities that Landlord has not expressly agreed to pay for in this Lease. Tenant must provide proof of payment of final bills for all utilities or service termination (cutoff) slips. Landlord may, at Landlord's option, pay utilities and be reimbursed by Tenant along with the next month's rent. Landlord shall not be liable for any interruptions or delays in the provision of utility services unless such interruptions or delays shall be caused by Landlord's gross negligence or willful misconduct.

9. **Renewal Term.** Unless notified in writing by the Town of Thunderbolt, this lease expires on 12/31/22 and there is no option to extend or automatically renew this agreement.

10. **Sublet and Assignment.** Tenant may not sublet Property in whole or in part or assign this Lease without the prior written consent of Landlord. This Lease shall create the relationship of Landlord and Tenant between the parties hereto; no estate shall pass out of Landlord and this Lease shall create a usufruct only. In the event Landlord shall assign this Lease, the assignee thereof shall be responsible to timely pay Brokers all commissions and other sums owed to them hereunder.

11. **Right of Access, Signage.**
    a. Landlord and Landlord's agents shall have the right of access to Property for inspection, repairs and maintenance during reasonable hours. In the case of emergency, Landlord may enter Property at any time to protect life and prevent damage to Property. Landlord and/or Landlord's agents may place a "for rent" or "for sale" sign on the interior or exterior of Property, and may show Property to prospective tenants or purchasers during reasonable hours. Tenant agrees to cooperate with Landlord, Landlord's agent and Brokers who may show Property to prospective Tenants. Tenant shall secure valuables and agrees to hold Landlord and/or Landlord's Agent harmless for any loss thereof. For each occasion where the access rights described above are denied. Tenant shall pay Landlord the sum of __$100_ as liquidated damages; it being acknowledged that Landlord shall be damaged by the denial of access, that Landlord's actual damages are hard to estimate, and that the above amount represents a reasonable pre-estimate of Landlord's damages rather than a penalty.
    b. Without Landlord's prior written permission, Tenant shall not place any sign, advertising matter,

or any other things of any kind on any part of the outside walls or roof of Property or on any part of the interior of Property that is visible from the exterior of Property. Tenant shall maintain all such permitted signs, advertising matter, or any other things of any kind in good condition and repair. Tenant agrees to remove at its cost all such permitted signs, advertising matter, or any other things of any kind at the end of this Lease.

12. **Use:** Property shall only be used for the purposes set out as follows: Museum that highlights the history of the Town of Thunderbolt. Property shall be used so as to comply with all federal, state, county, and municipal laws and ordinances and any applicable rules and regulations. Tenant shall not use or permit Property to be used for any disorderly or unlawful purpose; nor shall Tenant engage in an activity on Property which would endanger the health and safety of other Tenants or which otherwise creates a nuisance.

13. **Agency and Brokerage**

a. **Agency Disclosure:** In this Agreement, the term "Broker" shall mean a licensed Georgia real estate broker or brokerage firm and, where the context would indicate, the broker's affiliated licensees. No Broker in this transaction shall owe any duty to Landlord or Tenant greater than what is set forth in their brokerage engagements and the Brokerage Relationships in Real Estate Transactions Act, O.C.G.A. § 10-6A-1 et. seq.;

1. No Agency Relationship: Landlord and Tenant acknowledge that, if they are not represented by a Broker, they are each solely responsible for protecting their own interests, and that Broker's role is limited to performing ministerial acts for that party.

2. **Listing Broker:** Broker working with the landlord is identified on the signature page as the "Listing Broker"; and said Broker is ☐ or is not ☐ representing Landlord;

3. **Leasing Broker:** Broker working with Tenant (including transactions wher Broker is representing Landlord) is identified on the signature page as "Leasing Broker" and said Broker is ☐ or is not ☐ representing tenant; and

4. Dual Agency or Designated Agency: If landlord and Tenant are both being represented bt the same Broker, a relationship of either ☐ designated agency **or** ☐ dual agency shall exist

a. Dual Agency Disclosure: [Applicable only if dual agency has been selected above.]

Tenant and Landlord are aware that Broker is acting as a dual agent in this transaction and consent to the same. Tenant and Landlord have been advised that:

1. In serving as a dual agent, Broker is representing two clients whose interests are or at times could be different or even adverse;
2. Broker will disclose all adverse, material facts relevant to the transaction and actually known to the dual agent to all parties in the transaction except for information made confidential by request or instructions from each client which is not otherwise required to be disclosed by law;
3. Tenant and Landlord do not have to consent to dual agency and, the consent of Tenant and Landlord to dual agency has been given voluntarily and the parties have read and understand their brokerage engagement agreements.
4. Notwithstanding any provision to the contrary contained herein, Tenant and Landlord each hereby direct Broker, while acting as a dual agent, to keep confidential and not reveal to the other party any information which could materially and adversely affect their negotiating position.

b. Designated Agency Assignment: [Applicable only if the designated agency has been selected above.]

Broker has assigned __NA__ to work exclusively with Tenant as Tenant's designated agent and __NA__ to work exclusively with Owner/Landlord as Owner/Landlord's designated agent. Each designated agent shall exclusively represent the party to whom each has been assigned as a client and shall not represent in this transaction the client assigned to the other designated agent.

B. Material Relationship Disclosure: The Broker and/or affiliated licensees have no material relationship with either client except as follows: N/A .

(A material relationship means one actually known of a personal, familial or business nature between the Broker and/or affiliated licensees and a client which would impair their ability to exercise fair judgment relative to another client.)

C. Brokerage: The Brokers listed below have performed a valuable service in this transaction and are made parties hereunder to enforce their commission rights. Payment of commission to a Broker shall not create an agency or subagency relationship between Leasing Broker and either Landlord or Landlord's Broker. Landlord agrees to pay the Broker listed below and representing Landlord to lease and/or manage Property ("Listing Broker") a commission

(which commission has already been negotiated in a separate agreement) of *[Check one. The section not marked shall not be a part of this Agreement]*:

☐ __$0___ or _____ percent (%) of the total base rent to be paid under the Lease, which shall be due and payable upon occupancy.

☐ __$0____or _____ percent (%) of base rents paid, which shall be due and payable upon Tenant's monthly payment of rent in the manner provided in the Rent Paragraph above.

In the event the Lease is made in cooperation with another Broker listed as below as the Leasing Broker, the Listing Broker shall receive __NA__percent (%) of the total real estate commission paid hereunder and the Leasing Broker shall receive __NA___ percent (%) of the total real estate commission paid hereunder. In the event Tenant and/or Landlord fail or refuse to perform any of their obligations herein, the non-performing party shall immediately pay the Listing Broker and the Leasing Broker their full commissions. The Listing Broker and Leasing Broker may jointly or independently pursue the non-performing party for that portion of the commission, which they would have otherwise received under the Lease.

1. **14. Default.** If Tenant defaults under this Lease, Landlord shall have the right to pursue any or all of its remedies under Georgia Law. A default shall include, but not be limited to, the failure of Tenant to pay Landlord rent or reimburse Landlord for damages, repairs or costs when due, the abandonment of the Property by Tenant (which shall include the discontinuance of the use of the Property by Tenant) and the failure of Tenant to comply with any of the terms of the Lease including any rules and regulations. Landlord shall give Tenant a ten

(10) day notice of and opportunity to cure any non-monetary breach of this Lease. All remedies hereunder shall be cumulative and not concurrent. Tenant shall remain liable for rents from and after any action by Landlord under a proceeding against Tenant for holding over or distress warrant, whether or not Tenant retains the right to possession of Property.

15. **Rules and Regulations.**

A. Tenant is prohibited from adding, changing or in any way altering locks installed on the doors of Property without prior written permission of Landlord. If all keys to Property are not returned when Tenant vacates Property, Landlord may charge a re-key charge in the amount of $ **200.00**

B. Motor vehicles with expired or missing license plates, non-operative vehicles, boats, trailers, RVs and campers are not permitted on Property. Any such vehicle may be removed by Landlord at the expense of Tenant, for storage or for public or private sale, at Landlord's option, and Tenant shall have no right or recourse against Landlord thereafter.

C. No goods or materials of any kind or description, which are combustible or would increase fire risk shall be kept in or placed on Property (except for goods and materials typically found in a general office use provided that the same are limited in quantity to that normally found in such use).

D. No nails, screws or adhesive hangers except standard picture hooks, shade brackets and curtain rod brackets may be placed in walls, woodwork or any part of Property.

E. Tenant shall not place any objects or personal property on Property in a manner that is inconsistent with the load limits of Property. Tenant shall consult Landlord before placing any heavy furniture, file cabinets, or other equipment in Property.

F. ~~Landlord shall provide heating and air conditioning to Property~~ between a.m. and p.m., Monday to Friday (excluding public holidays); between____ a.m. and____ p.m., Saturday; and between ___ a.m. and_ p. m., Sunday. Tenant shall notify Landlord by 4 p.m. of the preceding day of any requests for overtime heating and air conditioning. Landlord may charge Tenant its reasonable costs of providing such overtime heating and air conditioning.

G. Tenant shall not, without Landlord's prior written consent, use any equipment which uses electric current in excess of 110 volts, which will increase the amount of electricity ordinarily furnished for use of Property as general office space, or which require clean circuits or other distribution circuits.

H. Landlord may establish additional reasonable Rules and Regulations concerning the maintenance, use, and operation of Property. Amendments and additions to the Rules and Regulations shall be effective upon delivery of a copy thereof to Tenant.

2. **Abandonment.** If Tenant removes or attempts to remove personal property from Property other than in the usual course of continuing occupancy, without having first paid Landlord all monies due, Property may be

considered abandoned, and Landlord shall have the right, without notice, to store or dispose of any personal property left on Property by Tenant. Landlord shall also have the right to store or dispose of any of Tenant's personal property remaining on Property after the termination of this Lease. Any such personal property shall become Landlord's personal property.

3. **Estoppel Certificate.** Tenant shall, from time to time, upon Landlord's request execute, acknowledge, and deliver to Landlord, within ten days of such request, a certificate certifying: (a) that this Lease is unmodified and in full force and effect (or if there has been modification thereof, that the same is in full force and effect as modified and stating the nature thereof); (b) that to the best of its knowledge there are no uncured defects on the part of the Landlord (or if any such defaults exist, a specific description thereof); (c) the date to which any rents or other charges have been paid in advance; and (d) any other reasonable matters requested by Landlord. Landlord and any prospective purchaser or transferee of Landlord's interest hereunder or any then existing or prospective mortgagee or grantee of any deed to secure debt may rely on such certificates.

4. **Property Loss.** Storage of personal property by Tenant shall be at Tenant's risk and Landlord shall not be responsible for any loss or damage. Tenant shall be responsible to insure Tenant's personal property against loss or damage. Landlord shall not be responsible or any damage to Tenant's property, unless such damage is caused by Landlord's gross negligence or willful misconduct.

5. **Destruction of Property.**
   - **A.** If earthquake, fire, storm, or other casualty shall totally destroy (or so substantially damage as to be untenable) Property, rent shall abate from the date of such destruction. Landlord shall have sixty (60) days to commence the restoration of Property to a tenable condition. If in Landlord's sole discretion restoration cannot be completed within 180 days following such destruction, Landlord may, by written notice furnished to Tenant within thirty (30) days of such destruction, terminate this Lease, whereupon rent and all other obligations hereunder shall be adjusted between the parties as of date of such destruction. In the event the Landlord elects to complete such restoration, but fails to do so within 180 days following such destruction, this Lease may be terminated as of the date of such destruction upon written notice from either party to the other given not more than ten (10) days following expiration of said 180 day period. If such notice is not given, then this Lease shall remain in force and rent shall commence upon delivery of Property to Tenant in a tenable condition.
   - **B.** If Property is damaged but not rendered wholly untenable by earthquake, fire, storm, or other casualty, rent shall abate in such proportion as Property have been damaged and Landlord shall restore Property as reasonably quickly as practicable whereupon full rent shall commence.
   - **C.** Rent shall not abate nor shall Tenant be entitled to terminate this Lease if the damage or destruction of Property, whether total or partial, is the result of the negligence of Tenants, its contractors, employees, agents, invitees, guests, or licensees.

6. **Alteration and Improvements.** Tenant shall not make or allow any alterations, physical additions, or improvements in or to Property without first obtaining Landlord's prior written consent. Landlord may grant or withhold such consent within its reasonable discretion and may impose reasonable conditions upon its consent. All costs of any such alteration, addition, or improvement shall be borne by Tenant, unless otherwise agreed in writing. The provisions of the Work Letter, attached hereto as an Exhibit and a part of this Lease, shall govern any alterations or improvements to be performed prior to the Commencement Date of this Lease. Any modifications or improvements at the Tenants expense must be authorized by the Town Administrator or designee and the Town reserves the right to dictate the vendor to perform such work, and or pay for the work and seek reimbursement from the Tenant.

7. **Insurance.** Tenant agrees that during the term of the Lease, Tenant will carry and maintain, at its sole cost, the following types of insurance, in the amounts specified and in the form hereinafter provided for:
   [Check all that apply. The sections not marked shall not be a part of this Agreement.]

   ☑ **A. General Commercial Liability Insurance (or reasonable equivalent thereto):** Such insurance shall cover Property and Tenant's use thereof against claims for personal injury, bodily injury or death, property damage and products liability occurring upon, in, or about Property. The limits of such policy shall be in such amounts as Landlord may from time to time reasonably require, but in any event noteless than _One Million__ Dollars ($1,000,000) for each occurrence. Such insurance shall be endorsed to cover independent contractors and contractual liability. Such insurance shall extend to any liability of Tenant arising out of the indemnities provided for in this Lease.

   ☑ **B. Fire and Extended Coverage Insurance (or reasonable equivalent thereto):** Such insurance shall cover Tenant's interest in its improvements to Property, and all furniture, equipment, supplies, and other property owned, leased, held or possessed by it and contained therein. Such insurance shall coverage shall be in an amount equal to not less 100 percent (%)

of full replacement cost as updated from time to time during the term of the Lease. Tenant shall promptly provide Landlord written notice in the event of any damages to persons or property occurring on Property from fire, accident, or any other casualty.

☑ **C. Workers' Compensation Insurance (or reasonable equivalent thereto):** Such insurance shall include coverage as required by applicable law.

☑ **D. Contractors Insurance (or reasonable equivalent thereto):** If Tenant engages any contractor or subcontractor to construct improvements or perform any other work on Property, Tenant shall require that such contractor or subcontractor have in force commercial general liability insurance, including personal injury coverage, contractual liability coverage, completed operations coverage, property damage endorsement, and, for any work which is subcontracted, contractors' protective liability coverage, insuring against any and all liability for injury to or death of a person or persons and for damage to property occasioned by or arising out of such work. The limits of such policy for both damage to property and bodily injury to be in such amounts as Landlord may from time to time reasonably require, but in any event not less than One Million Dollars ($1,000,000.00) for each occurrence. Any such contractor or subcontractor shall also be required to maintain workers' compensation insurance as required by applicable law. All insurance policies procured and maintained herein (other than workers' compensation insurance) shall name Landlord, Landlord's property manager(s), Landlord's broker(s) and Landlord's lender as additional insureds, shall be carried with insurance companies licensed to do business in the State of Georgia and having a current financial strength rating in Best's Ratings of not less than B+. Such policies shall be non-cancellable and may not be materially altered except after thirty (30) days notice to Landlord. Such insurance policies or, at Landlord's election, duly executed certificates of such policies, accompanied by proof of the premium for such insurance, shall be delivered to Landlord before the earlier of

(a) the initial entry by Landlord upon Property for the installation of its equipment or improvements; or (b) the Commencement Date of the Lease. Certificates of renewal of such insurance or copies of any replacement insurance policies, accompanied by proof of payment of the premiums for such insurance, shall be delivered to Landlord at least ten (10) days before the expiration of each respective policy term. Tenant shall comply with all rules and regulations applicable to Property issued by the Board of Fire Underwriters or by any body hereinafter constituted exercising similar functions. Tenant shall not intentionally do anything, or permit anything to be done, on or about Property that might adversely affect, contravene, or impair any policies of insurance that are in force for Property or any part thereof. Tenant shall pay all costs, damages, expenses, claims, fines, or penalties incurred by Landlord or Tenant because of Tenant's failure to comply with this Paragraph. Tenant indemnifies Landlord from all liability with reference thereto.

E. Event Insurance etc. – The Tenant must obtain event insurance etc.. for any non-covered risks under their current coverage, such as an outdoor event on or off property etc…

8. Taxes. Tenant shall pay any and all taxes (including assessments and license fees) assessed or imposed upon Tenant's fixtures, furniture, appliances, and personal property located in Property: [Check one. The section not marked shall not be a part of Agreement.]

A. **Landlord Pays All Property Taxes:** Landlord shall pay all property taxes levied against Property. Tenant shall not pay any property taxes levied against Property.

B. **Tenant Pays Increases in Property Taxes**: In addition to other rent payments specified in this Lease, Tenant shall pay as additional rent the amount by which all property taxes on Property for each tax year exceed taxes on Property for the tax year On or before the first day of the term of this Lease, Landlord will provide Tenant written notice of Landlord's estimate of
the additional rent payable under this subparagraph. During December of each calendar year or as soon as practicable, Landlord will give Tenant written notice of its estimate of the payments to be made for the ensuing calendar year. On the first day of each month during the term of the Lease, Tenant will pay one-twelfth of the estimated amount in the manner provided in the Rent Paragraph. If notice is not given in December, Tenant will continue to pay on the basis of the prior year's estimate until the month after the notice is given. Within 90 (ninety) days after the close of each calendar year or as soon as practicable thereafter, Landlord will deliver to Tenant: (1) a statement of property taxes for the calendar year certified by certified public accountants designated by Landlord; and (2) a statement of the payments made or to be made for the calendar year that has been prepared on the basis of the certified statement. If on the basis of those statements, Tenant owes an amount that is less than the estimated payments for the calendar year previously made by the Tenant, Landlord will pay Tenant the amount of the overpayment within thirty (30) days after delivery of those statements. If on the basis of those statements Tenant owes an amount that is more than the estimated payments for such calendar year previously made by Tenant,

Tenant will pay the deficiency to Landlord within thirty (30) days after delivery of those statements. If the Lease commences on a day other than the first day of the calendar year or ends on a day other than the last day of a calendar year, the amounts payable under this subparagraph shall be prorated.

9. Sale of Property to Tenant: Landlord shall pay Leasing Broker a commission in the amount of 0 percent (%) and listing Broker a commission in the amount of __NA__ percent (%) of the gross sales price at closing if Tenant acquires from Landlord title to Property or any part thereof or any property as an addition, expansion, or substitution for Property during the term of this Lease, any renewals thereof, or within one year after the expiration of this Lease. Such commission shall be payable in lieu of any further commission which otherwise Broker would have been due under this Lease. Notwithstanding the above, Owner shall immediately give notice to Broker if and when: (a) Owner enters into a contract to sell Property; pr (b) Owner closes on the sale of Property to another.

10. Condemnation. If all or any part of Property are taken or appropriated by any public or quasi-public authority under the power of eminent domain, and if the remaining portion of Property is thereby rendered untenable or unusable for the purposes herein stated, this Lease shall terminate when the condemning authority takes possession, and any rent paid for any period beyond possession by the condemning authority shall be repaid to Tenant. Landlord shall receive the entire condemnation award without deduction there from for any interest of Tenant in Property, but Tenant shall have the right to make a separate claim with the condemning authority for, and to receive therefore,
(a) any moving expenses incurred by Tenant as a result of such condemnation; (b) any costs incurred or paid by Tenant in connection with any alteration or improvement made by Tenant to Property; (c) the value of Tenant's personal property taken; (d) Tenant's loss of business income; and (e) any other separate claim which Tenant may be permitted to make under applicable law, provided that such other separate claims shall not reduce or adversely affect the amount of Landlord's award.

11. Disclaimer. Tenant and Landlord acknowledge that they have not relied upon any advice, representations or statements of Brokers and waive and shall not assert any claims against Brokers involving the same. Tenant and Landlord agree that Brokers shall not be responsible to advise Tenant on any matter including but not limited to the following: any matter which could have been revealed through a survey, title search or inspection of Property; the condition of Property, any portion thereof, or any item therein; building products and construction techniques; the necessity or cost of any repairs to Property; mold; hazardous or toxic materials or substances; termites and other wood destroying organisms; the tax or legal consequences of this transaction; the availability and cost of utilities or community amenities; the appraised or future value of Property; any condition(s) existing off Property which may affect Property; the terms, conditions and availability of financing; and the uses and zoning of Property whether permitted or proposed. Tenant acknowledges that Broker is not an expert with respect to the above matters and that, if any of these matters or any other matters are of concern, Tenant should seek independent expert advice relative thereto. Tenant acknowledges that Broker shall not be responsible to monitor or supervise any portion of any construction or repairs to Property and that such tasks clearly fall outside the scope of real estate brokerage services.

12. Other Provisions.

A. Time of Essence: Time is of the essence of this Lease.

B. No Waiver: Any failure of Landlord to insist upon the strict and prompt performance of any covenants or conditions of this Lease or any of the rules and regulations set forth herein shall not operate as a waiver of any such violation or of Landlord's right to insist on prompt compliance in the future of such covenant or condition, and shall not prevent a subsequent action by Landlord for any such violation. No provision, covenant or condition of this Lease may be waived by Landlord unless such waiver is in writing and signed by Landlord.

C. Definitions: "Landlord" as used in this Lease shall include its representatives, heirs, agents, assigns, and successors in title to Property. Broker shall be considered the authorized agent of Landlord except to the extent specifically provided for herein. The terms "Landlord" and "Tenant" shall include singular and plural, and corporations, partnerships, companies or individuals, as may fit the particular circumstances. The term "Binding Agreement Date" shall mean the date that this Lease has been signed by the Tenant and Landlord and a fully signed and executed copy thereof has been returned to the party making the offer to lease. "Property taxes" means any form of real or personal property taxes, assessments, special assessments, fees, charges, levies, penalties, service payments in lieu of taxes, excises, assessments, and charges for transit, housing, or any other purposes, impositions or taxes of every kind and nature whatsoever, assessed or levied by any authority having the power to tax against Property or any legal or equitable interest of Landlord in Property, whether imposed now or in the future, excepting only taxes measured by the net income of Landlord from all sources.

D. Entire Agreement: This Lease and any attached addenda and exhibits thereto shall constitute the entire

Agreement between the parties and no verbal statement, promise, inducement or amendment not reduced to writing and signed by both parties shall be binding.

E. Attorney's Fees and Costs of Collection: Whenever any sums due hereunder are collected by law, or by attorney at law to prosecute such an action, then both parties agree that the prevailing party will be entitled to reasonable attorney's fees, plus all costs of collection.

F. Indemnification: Tenant agrees to indemnify and hold Landlord and Broker harmless from and against any and all injuries, damages, losses, suits and claims against Landlord and/or Broker arising out of or related to: (1) Tenant's failure to fulfill any condition of this Lease; (2) any damage or injury happening in or to the Premises and the Property or to any improvements thereon as a result of the acts or omissions of Tenant or Tenant's family members, invitees or licensees; (3) Tenant's failure to comply with local, state or federal law; (4) any judgment, lien or other encumbrance filed against the Premises or Property as a result of Tenant's actions and any damage or injury happening in or about the Premises or Property to Tenant or Tenant's family members, invitees or licensees (except if such damage or injury is caused by the intentional wrongful acts of Landlord or Broker); (5) failure to maintain or repair equipment or fixtures, where the party responsible for their maintenance uses commercially reasonable efforts to make the necessary repairs and Tenant covenants not to sue Landlord or Broker with respect to any of the above-referenced matters. In addition to the above Tenant agrees to hold Broker harmless from and against Owner of the Property not paying or keeping current with any mortgage, property taxes or home owners association fee's on the Property or not fulfilling the Owner's obligations under this lease. For the purpose of this paragraph, the term "Broker" shall include Broker and Broker's affiliated licensees, employees and if Broker is a licensed real estate brokerage firm, then officers, directors and owners of said firm.

G. No Partnership: Tenant by execution of this Lease is not a partner of Landlord in the conduct of its business or otherwise, or joint venturer, or a member of any joint enterprise with Landlord.

H. No Recordation: Tenant shall not record this Lease nor any short form memorandum thereof without Landlord's prior written consent.

I. Notices:

(1) **Generally:** All notices given hereunder shall be in writing, legible and signed by the party giving the notice. In the event of a dispute regarding notice, the burden shall be on the party giving notice to prove delivery. The requirements of this notice paragraph shall apply even prior to this Agreement becoming binding. Notices shall only be delivered: (1) in person; (2) by courier, overnight delivery service or by certified or registered U.S. mail (hereinafter collectively "Delivery Service"); or (3) by email or facsimile. The person delivering or sending the written notice signed by a party may be someone other than that party.

- **Delivery of Notice:** A notice to a party shall be deemed to have been delivered and received upon the earliest of the following to occur: (1) the actual receipt of the written notice by a party; (2) in the case of delivery by a Delivery Service, when the written notice is delivered to an address of a party set forth herein (or subsequently provided by the party following the notice provisions herein), provided that a record of the delivery is created; (3) in the case of delivery electronically, on the date and time the written notice is electronically sent to an e-mail address or facsimile number of a party herein (or subsequently provided by the party following the notice provisions herein). Notice to a party shall not be effective unless the written notice is sent to an address, facsimile number or e-mail address of the party set forth herein (or subsequently provided by the party following the notice provisions herein).
- **When Broker Authorized to Accept Notice for Client:** Except where the Broker is acting in a dual agency capacity, the Broker and any affiliated licensee of the Broker representing a party in a client relationship shall be authorized agents of the party and notice to any of them shall for all purposes herein be deemed to be notice to the party. Notice to an authorized agent shall not be effective unless the written notice is sent to an address, facsimile number or e-mail address of the authorized agent set forth herein (or subsequently provided by the authorized agent following the notice provisions herein). Except as provided for herein, the Broker's staff at a physical address set forth herein of the Broker or the Broker's affiliated licensees are authorized to receive notices delivered by a Delivery Service. The Broker, the Broker's staff and the affiliated licensees of the Broker shall not be authorized to receive notice on behalf of a party in any transaction in which a brokerage engagement has not been entered into with the party or in which the Broker is acting in a dual agency capacity. In the event the Broker is practicing designated agency, only the designated agent of a client shall be an authorized agent of the client for the purposes of receiving notice.

(b) Governing Law and Interpretation: This Agreement may be signed in multiple counterparts each of which shall be deemed to be an original and shall be interpreted in accordance with the laws of Georgia. No provision herein, by virtue of the party who drafted it, shall be interpreted less favorably against one party than another. All references to time shall mean

the time in Georgia. If any provision herein is to be unenforceable, it shall be severed from this Agreement while the remainder of the Agreement shall, to the fullest extent permitted by law, continue to have full force and effect as a binding contract.

(2) **GAR Forms:** The Georgia Association of REALTORS®, Inc. ("GAR") issues certain standard real estate forms. These GAR forms are frequently provided to the parties in real estate transactions. No party is required to use any GAR form. Since these forms are generic and written with the interests of multiple parties in mind, they may need to be modified to meet the specific needs of the parties using them. If any party has any questions about his or her rights and obligations under any GAR form, he or she should consult an attorney. Provisions in the GAR Forms are subject to differing interpretations by our courts other than what the parties may have intended. At times, our courts may strike down or not enforce provisions in our GAR Forms, as written. No representation is made that the GAR Forms will protect the interests of any particular party or will be fit for any specific purpose. The parties hereto agree that the GAR forms may only be used in accordance with the licensing agreement of GAR. While GAR forms may be modified by the parties, no GAR form may be reproduced with sections removed, altered or modified unless the changes are visible on the form itself or in a stipulation, addendum, exhibit or amendment thereto.

(3) **Beware of Cyber Fraud:** Fraudulent e-mails attempting to get you to wire money to criminal computer hackers are increasingly common in real estate transactions. Under this scam, computer hackers fraudulently assume the online identity of the actual mortgage lender, closing attorney and/or real estate broker with whom you are working in the real estate transaction. Posing as a legitimate company, they then direct you to wire money to them. In many cases, the fraudulent e-mail is sent from what appears to be the authentic web page of the legitimate company responsible for sending the wiring instructions. You should use great caution in sending or receiving funds based solely on wiring instructions sent to you by e-mail. Independently verifying the wiring instructions with someone from the company sending them is the best way to prevent fraud. In particular, you should treat as highly suspect any follow up e-mails you receive from a mortgage lender, closing attorney and/or real estate broker directing you to wire funds to a revised account number. Never verify wiring instructions by calling a telephone number provided along with a second set of wiring instructions since you may end up receiving a fraudulent verification from the computer hackers trying to steal your money. Independently look up the telephone number of the company who is supposed to be sending you the wiring instructions to make sure you have the right one.

(4) **Exhibits.** All exhibits attached hereto, listed below or referenced herein are made a part of this Lease. If any such exhibit conflicts with any preceding paragraph, said exhibit shall control:

☐ Exhibit "A" Legal Description

☑ Other: DRAWING/PLAT OF BUILDING TO BE LEASED

☐ Other: _____

SPECIAL STIPULATIONS: The following Special Stipulations, if conflicting with any exhibits or preceding paragraph, shall control.

1) Rent check should be made payable to Town of Thunderbolt – 2821 River Dr., Thunderbolt, Ga, 31404.
2) Any legal documents shall be signed by an authorized representative of the Town of Thunderbolt.
3) In special circumstances for reoccurring bills, the Town may elect to pay for the electric, natural gas, other utilities, etc.., and the Tenant agrees to reimburse the Town within 10 business days of receiving such justified expense. A 10% late fee may be applied if the Town is not reimbursed within 10 business days.
4) Landlord may terminate the lease with 60 days' notice to the tenant upon (1) the tenant filing bankruptcy, (2) sale of business, (1) any event in which the tenant is no longer the party responsible for the monthly rent.
5) Tenant shall pay in addition to rent any Town wide stormwater fee or other user fee that the town may enact.
6) The rent may be adjusted annually on each anniversary date based on the inflationary index, or any similar reason.

By signing this Agreement, Tenant and Landlord acknowledge that they have each read and understood this Agreement and agree to its terms.

1 Tenant's Signature

Print or Type Name

Date

Tenant's E-mail Address

2 Tenant's Signature

Print or Type Name

Date

Tenant's E-mail Address

☐ **Additional Signature Page (F931) is attached.**

1 Landlord's Signature

Print or Type Name

Date

Landlord's E-mail Address

2 Landlord's Signature

Print or Type Name

Date

Landlord's E-mail Address

☐ **Additional Signature Page (F931) is attached.**

Leasing Broker/Affiliated Licensee Contact Information

Leasing Broker

Print or Type Name GA Real Estate License #

Broker/Affiliated Licensee Signature

Print or Type Name GA Real Estate License #

Licensee's Phone Number Fax Number

Licensee's E-mail Address

REALTOR® Membership

Broker's Address

Broker's Phone Number Fax Number

MLS Office Code Brokerage Firm License Number

Multiple Listing Number

Listing Broker/Affiliated Licensee Contact Information

Listing Broker

Broker/Affiliated Licensee Signature

Licensee's Phone Number Fax Number

Licensee's Email Address

REALTOR® Membership

Broker's Address

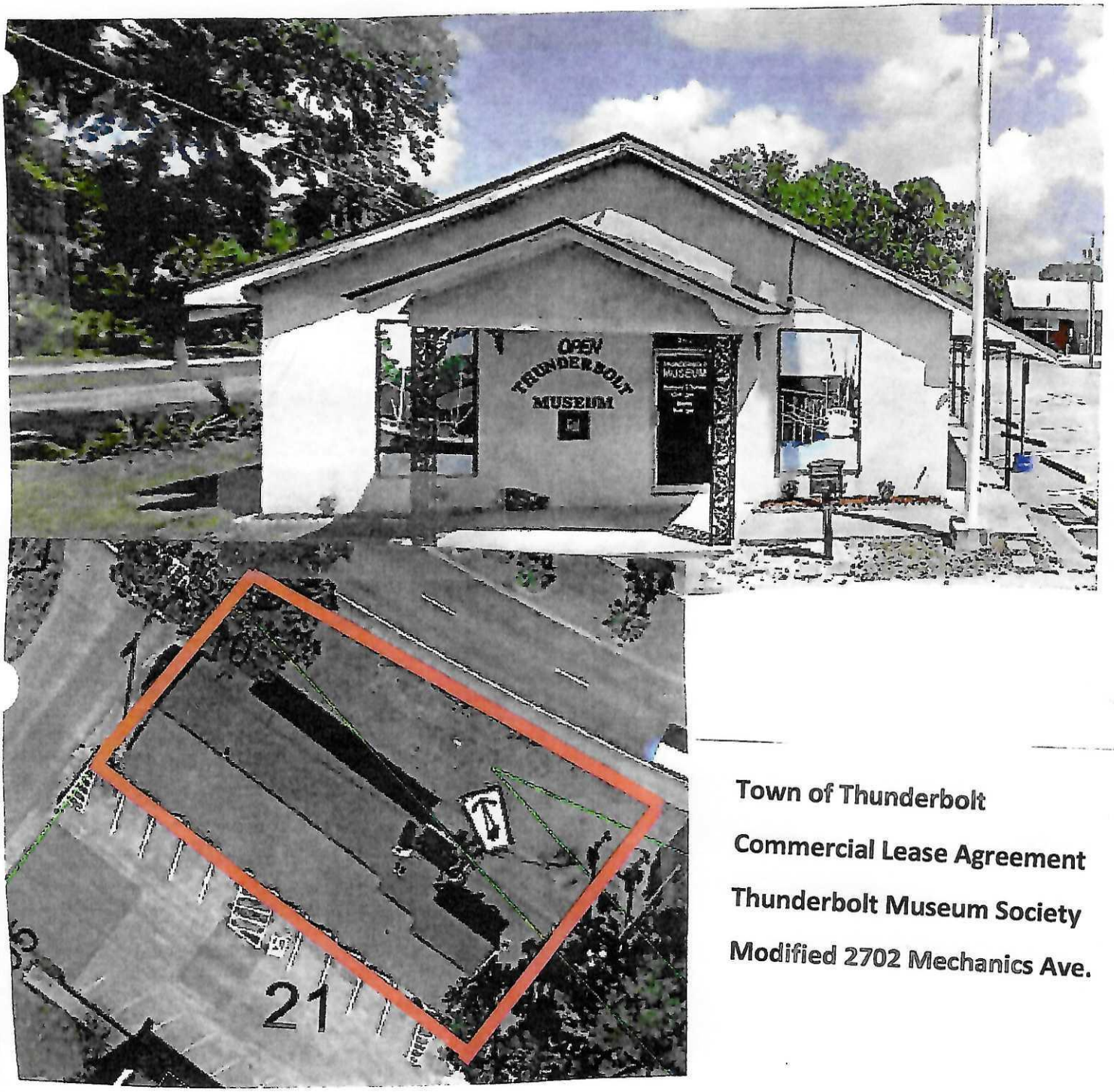
Broker's Phone Number Fax Number

MLS Office Code Brokerage Firm License Number

Exhibit A – Legal Description of Property

Tenant's Initials _____ Landlord's Initials _____

Exhibit A – Legal Description of Property



Town of Thunderbolt

Commercial Lease Agreement

Thunderbolt Museum Society

Modified 2702 Mechanics Ave.

Tenant's Initials

Landlord's Initials

TOWN OF THUNDERBOLT
PERMIT APPLICATION FOR COMMERCIAL OR BUSINESS OUTDOOR ACTIVITY EVENT OR EVENTS

APPLICANT NAME: CHRIS KINCADE

BUSINESS NAME: WESLEY OAK CHURCH / ASBURY MEMORIAL

ADDRESS: 3124 E VICTORY DRIVE THUNDERBOLT, GA 31404

TELEPHONE: 912-663-5087

ACTIVITY EVENT
PURPOSE: TRUNK-OR-TREAT FESTIVAL FOR FAMILIES

DATE OR DATES OF EVENT: 10/29/22
SPECIFY: DAY OR DAYS: DAY

TIME OF EVENT: BEGINS 4:00p ENDS 6:00p

PLEASE CHECK AND NOTE NUMBER(S) THE FOLLOWING IF APPLICABLE:

APPLICANT WILL HAVE THE FOLLOWING PRESENT AT THE ABOVE EVENT:

____ ALCOHOLIC BEVERAGES - REQUIRES LICENSE OR ADDITIONAL PERMIT

____ PORTABLE TOILET/S

____ TENTS, STAGES, ETC.

____ BOOTH/S

X VENDORS - HOMEMADE ITEMS ONLY-CHURCH MEMBERS

____ AMUSEMENT TYPE EQUIPMENT

X BANDS, MUSIC, INSTRUMENTS, ETC.

APPLICANT, OWNER OR INDIVIDUAL SHALL SUBMIT THIS APPLICATION 30 DAYS PRIOR TO EVENT OR EVENTS AND MUST APPEAR BEFORE THE MAYOR AND TOWN COUNCIL AT THE TOWN MEETING WHEN APPLICATION APPEARS ON THE TOWN MEETING AGENDA.

THIS APPLICATION AND PERMIT FEES SHALL BE APPROVED FOR NOT MORE THAN ONE YEAR AT A TIME. APPLICANT MUST APPLY AND PAY ALL PERMIT FEES EACH CALENDAR YEAR.

TOWN OF THUNDERBOLT ORDINANCES
RULES & REGULATIONS
FOR COMMERCIAL OR BUSINESS OUTDOOR ACTIVITY EVENT OR EVENTS

The following Town of Thunderbolt Ordinances, Rules and Regulations do hereby apply and are the sole responsibility of the Applicant, Owner or Individual to comply with:

1. Applicant, Owner, or Individual shall engage the services of an Off-Duty Police Officer or Officers be present at all times during the course of the Outdoor Activity Event, when alcoholic beverages are sold or distributed.
   Services of a Security Guard or Security Guard Service is not acceptable.
   IF APPLICANT, OWNER OR INDIVIDUAL REFUSES OR DOES NOT ENGAGE THE SERVICES OF AN OFF-DUTY POLICE OFFICER OR OFFICERS THE OUTDOOR ACTIVITY EVENT PERMIT SHALL BE REVOKED FOR 6 MONTHS, WHICH MAY ALSO INCLUDE A FINE OR FINES.

2. Applicant, Owner or Individual shall be responsible for removing Portable Toilets within 3 days following the event or shall be fined in the amount of $100.00 per day per unit until Portable Toilet or Toilets are removed.

   In the event, Applicant. Owner or Individual requires future use of Portable Toilet or Toilets, they shall be responsible for the cleaning, disinfecting, maintenance, and securing the Portable Toilet or Toilets.

3. Applicant, Owner or Individual will be responsible to remove all Tents, Stages, etc. within 3 days following the Outdoor Activity Event or shall be fined in the amount of $100.00 per day until Tents, Stages, etc., have been removed.

4. Applicant, Owner or Individual will be responsible for removing all booths within 3 days following the Outdoor Activity Event or shall be fined in the amount of $50.00 per day per Booth until Booth or Booths have been removed.

5. Applicant, Owner or Individual will be responsible for removing all Amusement Type Equipment within 3 days following the Outdoor Activity Event or shall be fined in the amount of $50.00 per day per Amusement Type Equipment until Equipment has been removed.

6. Applicant, Owner or Individual shall be held responsible for Bands, Instruments, Music, etc., to abide by the Town of Thunderbolt Noise Ordinance. NO BANDS, INSTRUMENTS, MUSIC, ETC. SHALL BE ALLOWED TO CONTINUE PLAYING AFTER 10:00 PM. IF APPLICANT, OWNER, OR INDIVIDUAL VIOLATES THIS ORDINANCE, THE OUTDOOR ACTIVITY PERMIT SHALL BE REVOKED FOR 6 MONTHS, WHICH MAY ALSO INCLUDE A FINE OR

FINES.

7. Applicant, Owner or Individual shall be responsible for cleaning grounds and disposing of all trash, debris, etc. as a result of the Outdoor Activity Event no later than 24 hours following the Event. If Applicant, Owner or Individual has not cleaned and disposed of trash, debris, etc, within 24 hours following the Event they will be fined in the amount of $25.00 per day until all trash, debris, etc. is disposed and grounds are cleaned.

By Signing below, I the Applicant, Owner or Individual applying for this Outdoor Activity Event Permit have read and will comply with the above and all other Town of Thunderbolt Ordinances, if applicable pertaining to Outdoor Activities and Events. A copy of Applicant, Owner or Individual Driver's License is also attached.

Applicant, Owner or Individual

Witness

Business

Notary Public

Date

Notary Public Stamp & Seal

DEBRA N. DENSON NOTARY PUBLIC CHATHAM COUNTY GA My Comm Exp. Nov. 26, 2022

RECEIVED BY: _____
Town Official and Title

INDEMNIFICATION AGREEMENT AND ACCEPTANCE TO ADHERE TO APPLICATION REQUIREMENTS

I, individually and as the Agent representing the Event Organization, do hereby agree to indemnify and hold harmless the Town of Thunderbolt, Georgia, its officers, agents, employees, officials, and contractors from and against any and all loss, damage, claim, demand, liability or expense by reason of any damage or injury to property or person which may be claimed to have arisen as a result of or in connection with the occupancy or use of listed event premises during the time period of said event.

Such obligation to indemnify and hold harmless shall continue notwithstanding any negligence or comparative negligence on the part of the Town of Thunderbolt relating to such loss or damage, except for loss or damage arising from the sole negligence or willful misconduct or gross negligence of the Town, and shall include all costs, expenses and liabilities incurred by the Town in connection with any such claim, suit, action or cause of action, including the investigation thereof and the defense of any action or proceeding brought thereon and any other judgment or decree which may be entered in any such action or proceeding or as a result thereof. These provisions shall survive the expiration or earlier termination of the use of premises. Nothing in this Agreement shall be construed to affect in any way the Town's rights, privileges, and immunities as set forth in Georgia Statues and/or the Constitution of the State of Georgia.

Representative Signature: _____ Date: 10/26/22

PERMIT FEES:

ONE DAY EVENT: $ 50.00 – Resident/Business $150.00- Non Resident/Non Business
*SPECIAL ONE DAY EVENT - $500.00 (require closing of streets, additional preparation of the Town's police officers, firefighters, employees, agents or contractors; additional fees may be assessed to cover the Town's costs for assistance or services)

TWO DAY EVENT: $ 100.00 – Resident/Business $200.00 – Non Resident/Non Business

THREE OR MORE
DAY EVENT: $ 150.00 – Resident/Business $ 450.00 – Non Resident/Non Business

Note: Request of Waiver of Fee(s) requires the completion of a Waiver of Fee Form to be attached to the permit application and must be approval of Mayor and Council.

****** PERMIT FEE MUST BE PAID AT THE TIME OF APPLICATION******
FAILURE TO SUBMIT PAYMENT ALONG WITH APPLICATION SHALL RESULT IN THE APPLICATION NOT BEING CONSIDERED FOR APPROVAL BY THE TOWN OF THUNDERBOLT.

PERMIT FEE REFUND:

THE TOWN OF THUNDERBOLT WILL REFUND THE PERMIT FEE IF THE TOWN IS NOTIFIED WITHIN AT LEAST 5 DAYS PRIOR TO THE EVENT BEING CANCELLED AND/OR 5 DAYS AFTER REQUESTED DAY OF THE EVENT, IF CANCELLED: SEE THE FOLLOWING:
ONE DAY EVENT: FULL REFUND, IF EVENT CANCELLED AND TOWN NOTIFIED OF CANCELLATION.
TWO DAY OR MORE EVENTS: ONE –THIRD OF THE PERMIT FEE REFUNDED, IF ONE OR MORE DAYS OF EVENT CANCELLED AND TOWN NOTIFIED OF CANCELLATION.
NO PARTIAL OR FULL PERMIT FEE WILL BE REFUNDED UPON PERMIT BEING REVOKED AS A RESULT OF APPLICANT, OWNER OR INDIVIDUAL BEING IN VIOLATION OF TOWN OF THUNDERBOLT ORDINANCES OR RULES AND REGULATIONS.

THE ATTACHED APPLICATION FOR AN OUTDOOR ACTIVITY EVENT PERMIT HAS BEEN APPROVED THIS _____ DAY OF _____, 20___.
BY THE TOWN OF THUNDERBOLT MAYOR AND TOWN COUNCIL WHOSE NAMES AND SIGNATURES ARE LISTED BELOW OR BY THE TOWN ADMINISTRATOR WHOSE SIGNATURE IS LISTED BELOW.

_____ Mayor

_____ Town Administrator

_____ Councilmember

_____ Councilmember

_____ Councilmember

_____ Councilmember

_____ Councilmember

_____ Councilmember

TOWN OF THUNDERBOLT
REQUEST FOR WAIVER FEE FOR
PERMIT APPLICATION FOR EVENT

APPLICANT NAME: CHRIS KINCADE

ORGANIZATION/ENTITY: ASBURY MEMORIAL / WESLEY OAK CHURCH

DATE OF EVENT: 10/29/22

PURPOSE OF EVENT: TRUNK-OR-TREAT FESTIVAL

REASON FOR WAIVER
REQUEST: CHURCH EVENT FOR FAMILIES

In consideration of being permitted to engage in the above activity, I hereby and on behalf of the organization/entity named above assume the risk of personal injury or death and I, for my heirs, executors, representatives and administrators, hereby agree to release, hold harmless, and forever discharge the Town of Thunderbolt and its police officers, firefighters, employees, agents, officials, and contractors from any and all liability, claims, demands, damages, expenses, fees, suits, proceedings, causes of action, cost of actions, including attorney's fees, for trial and appeal, which I or the organization/entity named above may have against them arising out of or in any way connected with my participation or the organization/entity in the activity listed above. I understand that this release and waiver includes any claims based on negligence, gross negligence, misconduct, actions or inactions of the Town of Thunderbolt, Georgia, it's employees, police officers, firefighters, officials, agents, representatives or contractors.

I HAVE READ THIS CONTRACT BEFORE SIGNING.

CHRIS KINCADE
APPLICANT'S NAME (PRINT)

10/26/22
DATE

SIGNATURE OF APPLICANT

SWORN BEFORE ME THIS 26 DAY OF October, 20 22.

NOTARY PUBLIC

MY COMMISSION EXPIRES & SEAL

DEATRE N. DENIS NOTARY PUBLIC My Comm Exp. Nov. 26, 2022 CHATHAM COUNTY, GA

WAIVER FEE WAS APPROVED BY MAYOR AND COUNCIL ON _____

WAIVER FEE WAS DENIED BY MAYOR AND COUNCIL ON _____

SERVICES AGREEMENT

This Services Agreement ("Agreement") is made effective as of _____, 2022 ("Effective Date"), by and between **FIRE RECOVERY USA, LLC,** a California limited liability company ("Company"), and **Thunderbolt Fire Department**, ("Client"). The Company and Client are referred to herein individually as a "party" and collectively as the "parties."

R E C I T A L S

WHEREAS, Company engages in the business of performing billing services ("Company Services") for United States Fire Departments in connection with the motor vehicle incidents and other emergency incidents at which the Client provides emergency services: and

WHEREAS, Client seeks the services of Company to assist with the billing for services that Client provides in connection with motor vehicle incidents and other emergency incidents; and

WHEREAS, Company and Client desire to enter into this Agreement to memorialize their agreements regarding the Company Services to be provided to Client.

NOW, THEREFORE, in consideration of the mutual representations, warranties and covenants set forth herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Company and Client agree as follows:

ARTICLE 1
ENGAGEMENT

1.1. Engagement: Client hereby engages Company to provide the Company Services described in Article 4 herein, and Client hereby accepts such engagement, all on the terms and conditions set forth herein. Company will determine the method, detail and means of performing the services detailed below.

ARTICLE 2
REPRESENTATIONS AND WARRANTIES

2.1. Representations and Warranties of Company: Company hereby represents and warrants to Client that, at all times during the term of this Agreement, Company is a limited liability company duly organized, validly existing and in good standing under the laws of the State of California.

2.2. Representations and Warranties of Client: Client hereby represents and warrants to Company that, at all times during the term of this Agreement, Client is, or Governs, or Contracts with an organized fire department established pursuant to the laws and ordinances of the state in which Client is located.

ARTICLE 3
COMPANY STATUS AND QUALIFICATIONS

3.1. Independent Contractor: Company enters into this Agreement, and will remain throughout the term of the Agreement, as an independent contractor. Company agrees that it will not become an employee, partner, agent or principal of Client while this Agreement is in effect.

3.2. Payment of Income Taxes: Company is responsible for paying when due all income taxes, including estimated taxes, incurred as a result of the compensation paid by Client to Company for services rendered under this Agreement. On request, Company will provide Client with proof of timely payment. Company agrees to indemnify Client for any claims, costs, losses, fees, penalties, interest, or damages suffered by Client resulting from Company's failure to comply with this provision.

3.3. Use of Employees or Subcontractors: Company may, at Company's own expense, use any employees or subcontractors as Company deems necessary to perform the services required of Company by this Agreement. Client may not control, direct, or supervise Company's employees or subcontractors in the performance of those services.

3.4. Qualifications: Company represents that it is qualified and has the skills necessary to perform the services under this Agreement in a competent and professional manner, without the advice or direction of Client.

3.5. Ownership Interest: Company will have no ownership interest in Client.

3.6. No Benefit Contributions: Company shall have no obligation under this Agreement to compensate or pay applicable taxes or provide employee benefits of any kind to any person employed or retained by Client.

3.7. Attorney-in-Fact: Client appoints Company as Client's attorney-in-fact for the following purposes:

(a) Billing and Collections: To bill and collect ("Collections") all revenue earned by and due to Client, in connection with Client's provision of emergency services provided/rendered at the sites of motor vehicle incidents and other emergency incidents, and to receive all Collections on Client's behalf and to sue for and give satisfaction for monies due on account and to withdraw any claims, suits, or proceedings pertaining to or arising out of Company's or Client's right to collect such amounts; and

(b) Endorsement: To take possession of and endorse in Client's name any notes, checks, money orders, and any other instruments received as Collections.

ARTICLE 4
GENERAL RESPONSIBILITIES OF COMPANY

4.1. Minimum Amount of Service: Company agrees to devote as much time and attention to the performance of the Company Services under this Agreement as may be, in Company's sole discretion, required to accomplish the tasks described herein to accomplish the results for which the Company is responsible under this Agreement.

4.2. Company Services: Company agrees to perform the Company Services as set forth in the "List of Company Services" attached hereto as Schedule "A" and incorporated herein by reference; including those additional services requested by Client and accepted in writing by the Company during the term of this Agreement.

4.3. Non-Exclusive Relationship: Company may represent, perform services for, and contract with as many additional clients, persons, or companies as Company, in Company's sole discretion, sees fit.

4.4. Time and Place of Performing Work: Company may perform the services under this Agreement at any suitable time and location Company chooses.

4.5. Materials and Equipment: Company will supply all materials and equipment required to perform the services under this Agreement.

4.6. Workers' Compensation: Company agrees to provide workers' compensation insurance for Company and Company's employees and agents and agrees to hold harmless and indemnify Client for any and all claims arising out of any injury, disability, or death of any of Company's employees or agents.

4.7. Assignment: Neither this Agreement nor any duties or obligations under this Agreement may be assigned by Company without the prior written consent of Client, which consent shall not be unreasonably withheld.

ARTICLE 5
COMPENSATION OF COMPANY

5.1. Compensation for Company Services: All Company Services provided pursuant to this Agreement will be provided in accordance with the terms, including compensation amounts and schedule of remittance, set forth in the "List of Company Services," attached hereto as Schedule A.

5.2. The provisions of Article 11 of this Agreement will govern any dispute associated with compensation.

ARTICLE 6
OBLIGATIONS OF CLIENT

6.1. Cooperation of Client: The Client agrees to comply with all reasonable requests of Company and provide access to all documents reasonably necessary to the performance of Company's duties under this Agreement. The Client shall be responsible for initially insuring, and continuing to review, local and state laws in the Client's jurisdiction to assure adequate legal authority for Company to engage in the Services described herein on behalf of Client.

6.2. Assignment: Once a run is assigned to Company for processing, Company will pursue collection until all efforts have been exhausted. While Company is pursuing payment on a claim Client is precluded from assigning any duties or obligations under this Agreement to any other party, without the written consent of Company. Client may not negotiate a settlement of a run Company is processing without Company's written consent to the terms of the settlement and compensation due to Company for processing the run. Once Company has determined a run is not collectible it will either be archived and closed or sent to a collection agency (only if Client chooses to do so). Sending an account to collection incurs additional fees to Client. If payment is received from a collection agency, the amount received will be posted to Client's account by Company. Company will reimburse Client at the rate set forth in Schedule A, List of Company Services for that particular run, minus any additional fees from the collection agency.

ARTICLE 7
CLIENT AUTHORIZATION

7.1. Authorization: Notwithstanding other provisions of this Agreement, Company shall obtain authorization from Client prior to performing any of the following:

(a) The sale conveyance, transfer, pledge exchange, assignment, hypothecation, or encumbrance of Client's interest in any sums owed to Client; and

(b) All other limitations as stated by the terms of this Agreement.

ARTICLE 8
TERMINATION OF AGREEMENT

8.1. Termination on Notice: Notwithstanding any other provision of this Agreement, either party may terminate this Agreement at any time by giving thirty days (30) written notice to the other party. Unless earlier terminated as set forth below, this Agreement shall be effective as of the date first set out above and shall continue for a period of one (1) year thereafter. This Agreement shall automatically renew for successive one (1) year periods, unless either party provides written notification to the other party of its decision not to renew this Agreement. Any runs submitted for processing to Company prior to the date of the notice of termination will continue to be processed under the terms of the List of Company Services set forth in this Agreement.

8.2. Termination on Occurrence of Stated Events: This Agreement will terminate automatically on the occurrence of any of the following events;

(a) Bankruptcy or insolvency of either party;

(b) The assignment of this Agreement by either party without the consent of the other party; the parties agree that neither party will unreasonably withhold consent to such an assignment.

8.3. Termination for Default: If either party defaults in the performance of this Agreement or materially breaches any of its provisions, the non-breaching party may terminate this Agreement by giving written notification to the breaching party. Termination will take effect immediately on receipt of notice by the breaching party or five days (5) after mailing of notice,

whichever occurs first. For the purposes of this paragraph, material breach of this Agreement includes, but is not limited to, the following:

(a) Company's failure to complete the services specified in the Description of Services;

(b) Client's material breach of any representation, warranty or agreement contained in this Agreement;

(c) Company's material breach of any representation, warranty or agreement contained in this Agreement;

(d) If the Fire Department does not maintain a minimum of 6 billable runs per year, the Fire Department will be subject to a minimum account service fee of $250 annually or termination of the account.

ARTICLE 9
PROPRIETARY RIGHTS

9.1. Confidential Information: Any written, printed, graphic, or electronically or magnetically recorded information furnished by Client for Company's use are the sole property of Client. This proprietary information includes, but is not limited to, customer requirements, customer lists, marketing information, and information concerning the Client's employees, products, services, prices, operations, and subsidiaries. Company will keep this confidential information in the strictest confidence, and will not disclose it by any means to any person except with the Client's approval, and only to the extent necessary to perform the services under this Agreement. This prohibition also applies to Company's employees, agents, and subcontractors. On termination of this Agreement, Company will return any confidential information in Company's possession to Client.

9.2 Confidential Information: Any written, printed, graphic, electronically or magnetically recorded information, computer-based hardware, software, applications, software scripts, or software links furnished by Company for Client's use are the sole property of Company. This proprietary information includes, but is not limited to, customer requirements, customer lists, marketing information, and information concerning the Company's employees, products, services, prices, operations, and subsidiaries. To the extent permitted by applicable law, Client will keep this confidential information in the strictest confidence, and will not disclose it by any means to any person except with the Company's approval, and only to the extent necessary to perform the services under this Agreement. This prohibition also applies to Client's employees, agents, and subcontractors. On termination of this Agreement, Client will return any confidential information in Client's possession to Company.

ARTICLE 10
INDEMNIFICATION

10.1. Indemnification: To the extent permitted by applicable law, the Company will indemnify and hold the Client harmless from and against any and all loss, damage, liability, claims and/or injury resulting from all negligent actions performed by the Company, or its agents on the

Company's behalf, in connection with this Agreement. However, this indemnification shall not apply with respect to any legal cause, action or consequential liability or losses as a result from inaccurate or incomplete information or unfounded or unreasonable submissions furnished to the Company by the Client nor shall it apply to any act, omission or negligence of the Client.

ARTICLE 11
GENERAL PROVISIONS

11.1. Governing Law: This Agreement shall be governed in all respects by the laws of the State of Georgia, without giving effect to any choice or conflict of law provision or rule (whether of the State of Georgia or any other jurisdiction that would cause the application of the laws of any jurisdiction other that the State of Georgia).

11.2. Entire Agreement: This Agreement constitutes the entire agreement between the Parties pertaining to the subject matter contained in it and supersedes all prior and contemporaneous agreements, representations, and understanding of the parties.

11.3. Successors and Assigns: Except as otherwise provided herein, the provisions hereof shall inure to the benefit of, and be binding upon, the successors, assigns, heirs, executors and administrators of the parties hereto. No party may assign any of its rights or obligations hereunder without the express written consent of the other party hereto, which consent may not be unreasonably withheld; provided, however, any party may assign any and all of its rights and interests hereunder to one or more of its affiliates and designate one or more of its affiliates to perform its obligations hereunder; provided, however, that such party remains liable for full and total performance of its obligations hereunder.

11.4. Notices: Any notices authorized to be given hereunder shall be in writing and deemed given, if delivered personally or by overnight courier, on the date of delivery, if a Business Day, or if not a business day, on the first Business Day following delivery, or if mailed, three days after mailing by registered or certified mail, return receipt requested, and in each case, addressed, as follows:

If to the Company to:

Fire Recovery USA, LLC
2271 Lava Ridge Court, Suite 120
Roseville CA 95661
Attention: Craig Nagler

with a copy to:

The Watkins Firm, APC
9915 Mira Mesa Boulevard, Suite 130
San Diego, CA 92131
Attention: Chris Popov, Esq.

If to Client to:
Thunderbolt Fire Department
2702 Mechanics Ave.
Thunderbolt, GA 31404
Attention: _____

with a copy to:
_____
_____
_____
Attention: _____

Or, if delivered by telecopy, on a Business Day before 4:00 PM local time of addressee, on transmission confirmed electronically, or if at any other time or day on the first Business Day succeeding transmission confirmed electronically, to the facsimile numbers provided above, or to such other address or telecopy number as any party shall specify to the other, pursuant to the

foregoing notice provisions. When used in this Agreement, the term “Business Day” shall mean a day other than a Saturday, Sunday or a Federal Holiday.

11.5. Waiver; Amendments: This Agreement sets forth the entire agreement of the parties respecting the subject matter hereof, (ii) supersede any prior and contemporaneous understandings, agreements, or representations by or among the parties, written or oral, to the extent they related in any way to the subject matter hereof, and (iii) may not be amended orally, and no right or obligation of any party may be altered, except as expressly set forth in a writing signed by such party.

11.6. Counterparts: This Agreement may be signed in several counterparts.

11.7. Expenses: Each party shall bear its own expenses incurred with respect to the preparation of this Agreement and the consummation of the transactions contemplated hereby.

11.8. Waiver of Jury Trial; Exemplary Damages: THE PARTIES HERETO HEREBY WAIVE THEIR RIGHTS TO TRIAL BY JURY WITH RESPECT TO ANY DISPUTE ARISING UNDER THIS AGREEMENT OR ANY TRANSACTION DOCUMENT. NO PARTY SHALL BE AWARDED PUNITIVE OR OTHER EXEMPLARY DAMAGES RESPECTING ANY DISPUTE ARISING UNDER THIS AGREEMENT OR ANY TRANSACTION DOCUMENT CONTEMPLATED HEREBY.

11.10 Cooperative Purchases: This Agreement may be used by other government agencies. Company has agreed to offer similar serves to other agencies under the same or similar terms and conditions as stated herein except that the revenue share percentage (Compensation) may be negotiated between the Company and other agencies based on the specific revenue expectations, agency reimbursed costs, and other agency requirements. The City/County/or Client/Protection District will in no way whatsoever incur any liability in relation to specifications, delivery, payment, or any other aspect of purchase by other agencies.

Signatures on following page:

IN WITNESS WHEREOF, the undersigned have executed this Agreement as of the date first written above.

COMPANY:

FIRE RECOVERY USA, LLC.
a California limited liability company

Signature: _____

Name: M. Craig Nagler

Title: Manager

CLIENT:

Mayor of the Town of Thunderbolt

Signature: _____

Name (printed): _____

Title: _____

SCHEDULE A

LIST OF COMPANY SERVICES

1. Company agrees to bill the responsible party on the Client's behalf for services provided/rendered during motor vehicle incidents and other emergency incidents. The Mitigation Rates lists in Exhibit A will increase by 5.9% annually or based on the annual percentage increase in the Consumer Price Index (CPI), as developed by the Bureau of Labor Statistics of the U.S. Department of Labor, whichever is more. Rate adjustments will occur on the anniversary date of this ordinance/resolution to keep the fire department's cost recovery program in conformity with increasing operating expenses.

2. Company will provide, as a normal matter of business; entry of claims and submission to the responsible party, collections of monies deemed due to the Client, payments of the agreed upon percentage of said monies to Client, and reporting of progress.

3. Company agrees to bill to the best of its ability all claims provided to Company by the Client.

4. Company will not begin litigation against a person, entity, or insurance carrier without prior written approval by the Client.

5. Company agrees to reimburse Client a portion of the monies collected at a rate of 78% (seventy-eight percent) of the total monies collected on the Client's claims. Total monies collected will be net, after any credit card processing fees (charged at 4%) or any collection agency fees. If Client submits a claim to Company and later wants to cancel the claim, Client may be subject to a billing fee. If Client agrees to submit a claim to Company's collection agency and later wants to remove it from collection status, Client may be subject to a fee of up to 35% of the amount of the claim to compensate for efforts made to collect the claim.

6. Company agrees to pay these monies collected to the Client on a monthly basis, within seven (7) working days after the close and accounting of the monthly billing cycle.

7. Company agrees to make available reports via a password protected website to the Client which detail billable claims outstanding (which are claims submitted, but not yet completed) and claims completed in the prior billing cycle.

8. Company will not be responsible for, nor accept any liability for, any erroneous, invalid, or illegal procedure codes or claims submitted to Company by the Client on the Run Sheets.

EXHIBIT A

MITIGATION RATES

BASED ON PER HOUR

The mitigation rates below are average “billing levels”, and are typical for the incident responses listed, however, when a claim is submitted, it may be itemized and based on the actual services provided.

These rates are based on actual costs using amortized schedules for apparatus (including useful life, equipment, repairs, and maintenance). Labor rates include an average department’s actual burdened labor costs and not just a firefighter's wage. These include wages, retirement, benefits, workers comp, etc.

MOTOR VEHICLE INCIDENTS

Level 1 - $0 – Not Billable in Georgia
Provide hazardous materials assessment and scene stabilization. This will be the most common “billing level”. This occurs almost every time the fire department responds to an accident/incident.

Level 2 - $623.00
Includes Level 1 services as well as clean up and material used (sorbents) for hazardous fluid clean up and disposal. We will bill at this level if the fire department has to clean up any gasoline or other automotive fluids that are spilled as a result of the accident/incident.

Level 3 – CAR FIRE - $760.00
Provide scene safety, fire suppression, breathing air, rescue tools, hand tools, hose, tip use, foam, structure protection, and clean up gasoline or other automotive fluids that are spilled as a result of the accident/incident.

ADD-ON SERVICES:

Extrication - $1,641.00
Includes heavy rescue tools, ropes, airbags, cribbing etc. This charge will be added if the fire department has to free/remove anyone from the vehicle(s) using any equipment. We will not bill at this level if the patient is simply unconscious and fire department is able to open the door to access the patient. This level is to be billed only if equipment is deployed.

Creating a Landing Zone - $502.00
Includes Air Care (multi-engine company response, mutual aid, helicopter). We will bill at this level any time a helicopter landing zone is created and/or is utilized to transport the patient(s).

Itemized Response: You have the option to bill each incident as an independent event with custom mitigation rates, for each incident using, itemized rates deemed usual, customary and reasonable (UCR). These incidents will be billed, itemized per apparatus, per personnel, plus products and equipment used.

HAZMAT

Level 1 - $881.00
Basic Response: Claim will include engine response, first responder assignment, perimeter establishment, evacuations, set-up and command.

Level 2 - $3,146.00
Intermediate Response: Claim will include engine response, first responder assignment, hazmat certified team and appropriate equipment, perimeter establishment, evacuations, set-up and command, Level A or B suit donning, breathing air and detection equipment. Set-up and removal of decon center.

Level 3 – $7,426.00
Advanced Response: Claim will include engine response, first responder assignment, hazmat certified team and appropriate equipment, perimeter establishment, evacuations, first responder set-up and command, Level A or B suit donning, breathing air and detection equipment and robot deployment. Set-up and removal of decon center, detection equipment, recovery and identification of material. Disposal and environment clean up. Includes above in addition to any disposal rates of material and contaminated equipment and material used at scene. Includes 3 hours of on scene time - **each additional hour @ $356.00 per HAZMAT team**.

FIRE INVESTIGATION
Fire Investigation Team - $346.00 per hour.
Includes:

- Scene Safety
- Investigation
- Source Identification
- K-9/Arson Dog Unit
- Identification Equipment
- Mobile Detection Unit
- Fire Report

The claim begins when the Fire Investigator responds to the incident and is billed for logged time only.

FIRES
Assignment - $503.00 per hour, per engine / $629.00 per hour, per truck

Includes:

- Scene Safety
- Investigation
- Fire / Hazard Control

This will be the most common “billing level”. This occurs almost every time the fire department responds to an incident.

OPTIONAL: A fire department has the option to bill each fire as an independent event with custom mitigation rates.

Itemized, per person, at various pay levels and for itemized products use.

ILLEGAL FIRES

Assignment - $503.00 per hour, per engine / $629.00 per hour, per truck

When a fire is started by any person or persons that requires a fire department response during a time or season when fires are regulated or controlled by local or state rules, provisions or ordinances because of pollution or fire danger concerns, such person or persons will be liable for the fire department response at a cost not to exceed the actual expenses incurred by the fire department to respond and contain the fire. Similarly, if a fire is started where permits are required for such a fire and the permit was not obtained and the fire department is required to respond to contain the fire the responsible party will be liable for the response at a cost not to exceed the actual expenses incurred by the fire department. The actual expenses will include direct labor, equipment costs and any other costs that can be reasonably allocated to the cost of the response.

WATER INCIDENTS

Level 1

Basic Response: Claim will include engine response, first responder assignment, perimeter establishment, evacuations, first responder set-up and command, scene safety and investigation (including possible patient contact, hazard control). This will be the most common "billing level". This occurs almost every time the fire department responds to a water incident.

Billed at $503 plus $62 per hour, per rescue person.

Level 2

Intermediate Response: Includes Level 1 services as well as clean up and material used (sorbents), minor hazardous clean up and disposal. We will bill at this level if the fire department has to clean up small amounts of gasoline or other fluids that are spilled as a result of the incident.

Billed at $1,006 plus $62 per hour, per rescue person.

Level 3

Advanced Response: Includes Level 1 and Level 2 services as well as D.A.R.T. activation, donning breathing apparatus and detection equipment. Set up and removal of decon center, detection equipment, recovery and identification of material. Disposal and environment clean up. Includes above in addition to any disposal rates of material and contaminated equipment and material used at scene.

Billed at $2,489 plus $62 per hour per rescue person, plus $126 per hour per HAZMAT team member.

Level 4
Itemized Response: You have the option to bill each incident as an independent event with custom mitigation rates for each incident using itemized rates deemed usual, customary and reasonable (UCR). These incidents will be billed, itemized, per trained rescue person, plus rescue products used.

BACK COUNTRY OR SPECIAL RESCUE
Itemized Response: Each incident will be billed with custom mitigation rates deemed usual, customary and reasonable (UCR). These incidents will be billed, itemized per apparatus per hour, per trained rescue person per hour, plus rescue products used.

Minimum billed $503 for the first response vehicle plus $62 per rescue person. Additional rates of $503 per hour per response vehicle and $62 per hour per rescue person.

CHIEF RESPONSE
This includes the set-up of Command, and providing direction of the incident. This could include operations, safety, and administration of the incident.

Billed at $315 per hour.

MISCELLANEOUS / ADDITIONAL TIME ON-SCENE

ADDITIONAL TIME ON-SCENE (for all levels of service)
Engine billed at $503 per hour.
Truck billed at $629 per hour.
Miscellaneous equipment billed at $378.

MITIGATION RATE NOTES
The mitigation rates above are average “billing levels” for one hour of service, and are typical for the incident responses listed, however, when a claim is submitted, it may be itemized and based on the actual services provided.

These average mitigation rates were determined by itemizing costs for a typical run (from the time a fire apparatus leaves the station until it returns to the station) and are based on the actual costs, using amortized schedules for apparatus (including useful life, equipment, repairs, and maintenance) and labor rates (an average department’s “actual personnel expense” and not just a firefighter's basic wage). The actual personnel expense includes costs such as wages, retirement, benefits, workers comp, insurance, etc.
etc.

RESOLUTION NO: _____

A RESOLUTION ESTABLISHING AND IMPLEMENTING A PROGRAM TO CHARGE MITIGATION RATES FOR THE DEPLOYMENT OF EMERGENCY AND NON-EMERGENCY SERVICES BY THE FIRE DEPARTMENT FOR SERVICES PROVIDED/RENDERED FOR THE THUNDERBOLT FIRE DEPARTMENT.

WHEREAS, the emergency services response activity to incidents continues to increase each year; Environmental Protection requirements involving equipment and training, and Homeland Security regulations involving equipment and training, creating additional demands on all operational aspects of the fire department services; and

WHEREAS, the fire department has investigated different methods to maintain a high level of quality of emergency and non-emergency service capability throughout times of constantly increasing service demands, where maintaining an effective response by the fire department decreases the costs of incidents to insurance carriers, businesses, and individuals through timely and effective management of emergency situations, saving lives and reducing property and environmental damage; and

WHEREAS, raising real property tax to meet the increase in service demands would not be fair when the responsible party(s) should be held accountable for their actions; and

WHEREAS, the Mayor and Council of the Town of Thunderbolt desires to implement a fair and equitable procedure by which to collect said mitigation rates and shall establish a billing system in accordance with applicable laws, regulations and guidelines; Now, Therefore

BE IT ORDAINED BY THE MAYOR AND COUNCIL OF THE TOWN OF THUNDERBOLT:

SECTION 1: The Mayor and Council of the Town of Thunderbolt shall initiate mitigation rates for the delivery of emergency and non-emergency services by the fire department for personnel, supplies and equipment to the scene of emergency and non-emergency incidents as listed in “EXHIBIT A”. The mitigation rates shall be based on actual costs of the services and that which is usual, customary and reasonable (UCR) as shown in “EXHIBIT A”, which may include any services, personnel, supplies, and equipment and with baselines established by addendum to this document.

SECTION 2: A claim shall be filed to the responsible party(s) through their insurance carrier. In some circumstances, the responsible party(s) will be billed directly.

SECTION 3: The Mayor and Council of the Town of Thunderbolt may make rules or regulations and from time to time may amend, revoke, or add rules and regulations, not consistent with this Section, as they may deem necessary or expedient in respect to billing for these mitigation rates or the collection thereof.

SECTION 4: It is found and determined that all formal actions of the Mayor and Council of the Town of Thunderbolt concerning and relating to the adoption of this Resolution were adopted in open meetings of the Mayor and Council of the Town of Thunderbolt, and that all deliberations of this Mayor and Council of the Town of Thunderbolt and any of its committees that resulted in such formal actions were in accordance with all legal requirements, and the Codified Resolutions of the Mayor and Council of the Town of Thunderbolt.

SECTION 5: This resolution shall take effect at the date of adoption.

SECTION 6: The Mitigation Rates lists in Exhibit A will increase by 2.6% annually or based on the annual percentage increase in the Consumer Price Index (CPI), as developed by the Bureau of Labor Statistics of the U.S. Department of Labor, whichever is more. Rate adjustments will occur on the anniversary date of this ordinance/resolution to keep the fire department's cost recovery program in conformity with increasing operating expenses.

Passed: _____ _____
Signature

Approved _____ _____
Signature

THE ABOVE WAS PASSED

Signature: _____

Name (printed): _____

Title: _____

Date: _____

EXHIBIT A
MITIGATION RATES
BASED ON PER HOUR

The mitigation rates below are average “billing levels”, and are typical for the incident responses listed, however, when a claim is submitted, it may be itemized and based on the actual services provided.

These rates are based on actual costs using amortized schedules for apparatus (including useful life, equipment, repairs, and maintenance). Labor rates include an average department’s actual burdened labor costs and not just a firefighter's wage. These include wages, retirement, benefits, workers comp, etc.

MOTOR VEHICLE INCIDENTS

Level 1 - $0 – Not Billable in Georgia

Provide hazardous materials assessment and scene stabilization. This will be the most common “billing level”. This occurs almost every time the fire department responds to an accident/incident.

Level 2 - $623.00

Includes Level 1 services as well as clean up and material used (sorbents) for hazardous fluid clean up and disposal. We will bill at this level if the fire department has to clean up any gasoline or other automotive fluids that are spilled as a result of the accident/incident.

Level 3 – CAR FIRE - $760.00

Provide scene safety, fire suppression, breathing air, rescue tools, hand tools, hose, tip use, foam, structure protection, and clean up gasoline or other automotive fluids that are spilled as a result of the accident/incident.

ADD-ON SERVICES:

Extrication - $1,641.00

Includes heavy rescue tools, ropes, airbags, cribbing etc. This charge will be added if the fire department has to free/remove anyone from the vehicle(s) using any equipment. We will not bill at this level if the patient is simply unconscious and fire department is able to open the door to access the patient. This level is to be billed only if equipment is deployed.

Creating a Landing Zone - $502.00

Includes Air Care (multi-engine company response, mutual aid, helicopter). We will bill at this level any time a helicopter landing zone is created and/or is utilized to transport the patient(s).

Itemized Response: You have the option to bill each incident as an independent event with custom mitigation rates, for each incident using, itemized rates deemed usual, customary and reasonable (UCR). These incidents will be billed, itemized per apparatus, per personnel, plus products and equipment used.

HAZMAT

Level 1 - $881.00
Basic Response: Claim will include engine response, first responder assignment, perimeter establishment, evacuations, set-up and command.

Level 2 - $3,146.00
Intermediate Response: Claim will include engine response, first responder assignment, hazmat certified team and appropriate equipment, perimeter establishment, evacuations, set-up and command, Level A or B suit donning, breathing air and detection equipment. Set-up and removal of decon center.

Level 3 – $7,426.00
Advanced Response: Claim will include engine response, first responder assignment, hazmat certified team and appropriate equipment, perimeter establishment, evacuations, first responder set-up and command, Level A or B suit donning, breathing air and detection equipment and robot deployment. Set-up and removal of decon center, detection equipment, recovery and identification of material. Disposal and environment clean up. Includes above in addition to any disposal rates of material and contaminated equipment and material used at scene. Includes 3 hours of on scene time - **each additional hour @ $356.00 per HAZMAT team**.

FIRE INVESTIGATION
Fire Investigation Team - $346.00 per hour.
Includes:

- Scene Safety
- Investigation
- Source Identification
- K-9/Arson Dog Unit
- Identification Equipment
- Mobile Detection Unit
- Fire Report

The claim begins when the Fire Investigator responds to the incident and is billed for logged time only.

FIRES
Assignment - $503.00 per hour, per engine / $629.00 per hour, per truck

Includes:

- Scene Safety
- Investigation
- Fire / Hazard Control

This will be the most common “billing level”. This occurs almost every time the fire department responds to an incident.

OPTIONAL: A fire department has the option to bill each fire as an independent event with custom mitigation rates.

Itemized, per person, at various pay levels and for itemized products use.

ILLEGAL FIRES

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When a fire is started by any person or persons that requires a fire department response during a time or season when fires are regulated or controlled by local or state rules, provisions or ordinances because of pollution or fire danger concerns, such person or persons will be liable for the fire department response at a cost not to exceed the actual expenses incurred by the fire department to respond and contain the fire. Similarly, if a fire is started where permits are required for such a fire and the permit was not obtained and the fire department is required to respond to contain the fire the responsible party will be liable for the response at a cost not to exceed the actual expenses incurred by the fire department. The actual expenses will include direct labor, equipment costs and any other costs that can be reasonably allocated to the cost of the response.

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Billed at $2,489 plus $62 per hour per rescue person, plus $126 per hour per HAZMAT team member.

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CHIEF RESPONSE
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MISCELLANEOUS / ADDITIONAL TIME ON-SCENE

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INTER OFFICE CORRESPONDENCE

TO: Town Administrator, Robert Milie

FROM: Chief Sean Clayton

DATE: November 3, 2022

SUBJECT: Monthly Report for October 2022

POLICE DEPARTMENT:
I attended a training class for Less-Lethal Devices. This was a train the trainer class so I'm certified to train our officers with these types of devices. This is a good thing because it gives us other options towards further de-escalating a particular incident, where before, lethal force would be the next option.

There were 376 violators who were flagged by the speed camera on Whatley Avenue for the first month of going live, and only one person has contested their citation. A court date is set for that person here in Thunderbolt, and a representative from Blue Line Solutions will be here to testify in that case.

On the night of October 25th Officers were dispatched to the Enmarket convenience store in reference to a suspicious vehicle. When Officers investigated this incident, they found the person to be in possession of marijuana and methamphetamine. That person was arrested without incident. At the Drug Advisory Board meeting, the CNT Director said they are finding fentanyl in every drug seizure. This is now another added danger that our officers are faced with when dealing with these types of cases.

DEPARTMENT MONTHLY ACTIVITY REPORT

INCIDENT REPORTS	26
ACCIDENT REPORTS	6
MISC. REPORTS	3
DOMESTIC VIOLENCE CASES	0
D.U.I. ARRESTS	0
PERSONS ARRESTED	7
TRAFFIC CITATIONS	59
WRITTEN WARNINGS	41
ANIMAL COMPLAINTS	1

2021/2022 Monthly Comparison																										
	Jan		Feb		Mar		Apr		May		Jun		Jul		Aug		Sep		Oct		Nov		Dec		Yearly	
Classification of Offenses	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	2021	2022
Homicide	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Sexual Assault	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	3	0	0	0	0	1	0	1	3
Robbery	0	1	0	1	0	0	0	0	0	0	0	0	0	0	0	2	0	0	0	0	0	0	0	0	0	4
Agg Assault	1	0	1	0	0	1	0	0	1	0	1	0	0	2	0	0	0	0	0	1	0	0	1	0	5	4
Simple Assault	2	0	0	2	2	0	1	1	2	2	1	2	4	2	0	1	1	0	1	0	3	0	2	0	19	10
Burglary	0	1	0	0	0	0	1	0	0	2	0	0	0	3	0	0	0	0	1	0	1	0	1	0	4	6
Larceny-Theft	2	1	5	1	11	2	0	9	3	9	2	4	1	6	3	1	3	4	1	0	2	1	3	0	36	37
Auto Theft	0	0	0	0	0	0	0	0	1	1	1	1	0	3	1	0	1	0	0	0	0	0	0	0	4	5
	5	3	6	4	13	3	2	10	7	14	5	7	5	16	4	4	5	7	3	1	6	0	8	0	69	69

MUNICIPAL COURT

The fees and fines the Court collected for the month of October were $8,619.00



Mission Statement

"The mission of the Thunderbolt Fire Department is to minimize loss of life, property and environment in the Town of Thunderbolt from both natural and man-made disasters, life threatening situations and to assist other emergency agencies. We will achieve this mission through professional/progressive training and fire education while providing first class services to our community."

MAYOR AND COUNCIL REPORT

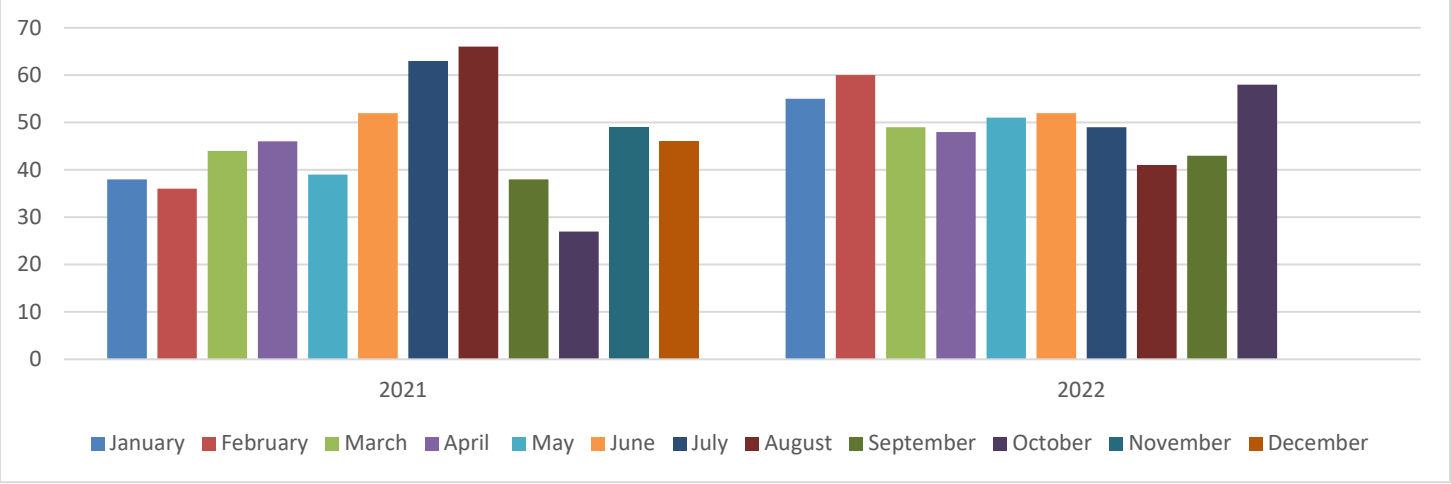
October Report

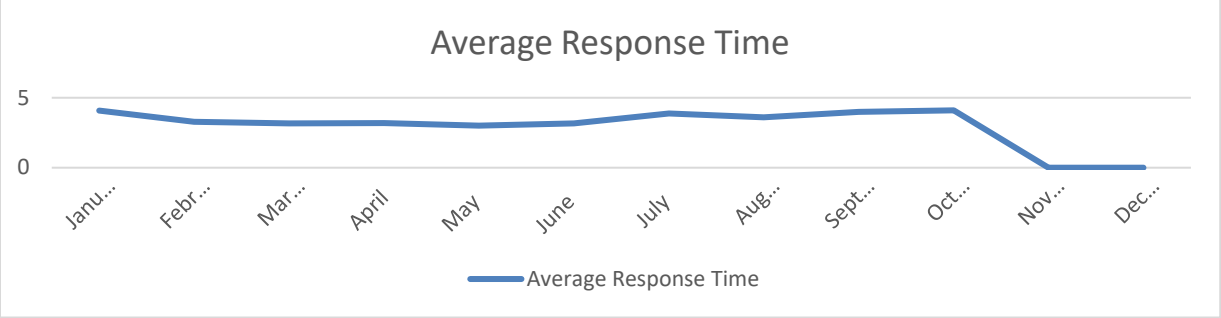
Prepared by:
Andrew Bateman
Chief of Thunderbolt Fire Department

Thunderbolt Fire Incident Breakdown

	JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEPT	OCT	NOV	DEC	YTD
Fire Response	16	17	23	15	22	18	15	26	10	15			177
EMS Response	39	43	26	33	29	34	34	15	33	43			329
Grand Total	55	60	49	48	51	52	49	41	43	58	0	0	506

Call Comparison Between 2021 & 2022





Department News

Highlighted Incidents:

- Vehicle Accident on Bonaventure Road.
    - Vehicle caught on fire on impact and a witness pulled patient to safety.

Highlighted Projects:

- Chief Office and Emergency Operation Center/Classroom Update
    - Flooring ordered (waiting on delivery).
    - Install Flooring, Trim, and complete a punch list of small items to be completed.

Chief Report:

- Continue Preparation for ISO Inspection in 2023.
- Department continually working to finish up station remodel and repairs.
- Continuing Completion of Maintenance work on all apparatus.
    - (PM Services and Pump Testing)
- Thunderbolt FD was part of the American Red Cross Smoke Detector Program, COVID shut program down for a while but as of October we are now back in the Program and have Smoke Detectors to place in homes. We will be working with the Red Cross to ensure everyone has a working smoke detector.

Thunderbolt Fire Department
Training

Online Training: **9 Hours**

Company Training: **43.5 Hours**

Outside Training: **12 Hour**

YTD 2022 Hours: 550.91 Hours

MONTHLY STATUS REPORT

FOR

PUBLIC WORKS

FOR THE

TOWN OF THUNDERBOLT

OCTOBER 2022

Water Treatment Reports

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 3

Collected by Oscar Crosby

Sampling Location: ***Thompson Park***
Sample Collected:10/19/2022 10:40

Sample Type: ***Routine***
Lab Received: 10/19/2022 11:18

Lab Sample No.: **116829**
Chlorine Residual: **1.50**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	10/19/2022 11:18	10/20/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 10/20/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 2

Collected by Oscar Crosby

Sampling Location: ***Downing St. LS***
Sample Collected:10/19/2022 10:15

Sample Type: ***Routine***
Lab Received: 10/19/2022 11:18

Lab Sample No.: **116828**
Chlorine Residual: **1.38**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	10/19/2022 11:18	10/20/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 10/20/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 1

Collected by Oscar Crosby

Sampling Location: ***Fire Department***
Sample Type: ***Routine***
Lab Sample No.: **116827**

Sample Collected: 10/19/2022 10:50
Lab Received: 10/19/2022 11:18
Chlorine Residual: **1.42**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	10/19/2022 11:18	10/20/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 10/20/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

Water Distribution Reports

State of Georgia
Department of Natural Resources
Environmental Protection Division

ENVIRONMENTAL PROTECTION DIVISION
DRINKING WATER PROGRAM
GROUND WATER OPERATION REPORT

Drinking Water Permitting & Engineering
2 Martin Luther King Jr. Drive Suite 1362 East
Atlanta, GA 30334

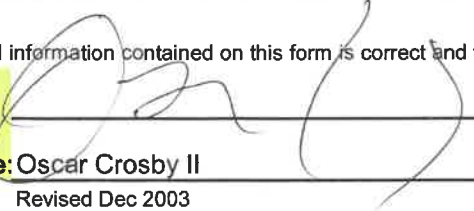
System Name: Thunderbolt Water System
WSID #: GA- 510006
Plant Name: Well #4
Plant ID# :
County: Chatham
Permit # : 510006
Summary of (MONTH) OCTOBER
(YEAR): 2022

Day of Month	Raw Water Treated* (Gallons)	Treated Water Pumped to Distribution System* (Gallons)	Amount of Fluoride Used (lb or gal)	Finished Water Analysis: Chlorine Free Available (mg/L)	Finished Water Analysis: Fluoride (mg/L)	Finished Water Analysis: pH Value (S.U.)	Remarks
1	182,364	182,364		1.07		8.5	
2	190,862	190,862		1.42		8.5	
3	259,041	259,041		1.03		8.5	
4	215,380	215,380		1.42		8.5	
5	235,193	235,193		1.20		8.5	
6	230,882	230,882		1.04		8.5	
7	240,656	240,656		1.34		8.5	
8	164,042	164,042		1.09		8.5	
9	215,262	215,262		1.04		8.5	
10	186,531	186,531		1.67		8.5	
11	238,037	238,037		1.32		8.5	
12	161,089	161,089		1.48		8.3	
13	252,076	252,076		1.50		8.3	
14	304,292	304,292		1.21		8.3	
15	119,460	119,460		1.20		8.4	
16	149,757	149,757		1.32		8.5	
17	265,422	265,422		1.00		8.5	
18	244,991	244,991		1.49		8.5	
19	164,809	164,809		1.03		8.5	
20	231,420	231,420		1.00		8.5	
21	192,517	192,517		1.39		8.5	
22	154,249	154,249		1.02		8.5	
23	289,154	289,154		1.08		8.5	
24	407,597	407,597		2.15		8.5	
25	256,252	256,252		0.76		8.5	
26	217,072	217,072		2.17		8.5	
27	227,886	227,886		2.10		8.5	
28	172,999	172,999		1.87		8.5	
29	193,693	193,693		1.82		8.5	
30	240,577	240,577		1.63		8.4	
31	237,219	237,219		1.58		8.4	
Total	6,840,781	6,840,781	0	42.44	0	262.60	
Days	31	31	0	31	0	31	
Avg.	220,670	220,670	0.00	1.37	0.00	8.47	
Max.	407,597	407,597	0	2.17	0	8.5	
Min.	119,460	119,460	0	0.76	0	8.3	

*Treated and/or Pumped values should be reported as a total for a 24 hour period beginning 0000-2400.
(e.g., Take reading at same time each day so that it is for 24 hours)

Type Fluoride Compound Used: n/a
Type Chlorine Compound Used: Sodium Hypochlorite

I certify that all information contained on this form is correct and true to the best of my knowledge.

Signature: 
Title: Public Works Manager

Print Name: Oscar Crosby II
Certification Class: III
Phone #: 912-644 7999

State of Georgia
Department of Natural Resources
Environmental Protection Division

ENVIRONMENTAL PROTECTION DIVISION
DRINKING WATER PROGRAM
GROUND WATER OPERATION REPORT

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2 Martin Luther King Jr. Drive Suite 1362 East
Atlanta, GA 30334

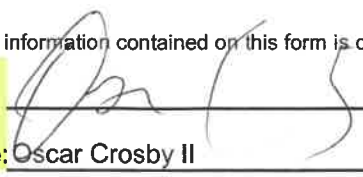
System Name: Thunderbolt Water System
WSID #: GA- 510006
Plant Name: Well # 3
Plant ID# :
County: Chatham
Permit # : 510006
Summary of (MONTH) OCTOBER
(YEAR): 2022

Day of Month	Raw Water Treated* (Gallons)	Treated Water Pumped to Distribution System* (Gallons)	Amount of Fluoride Used (lb or gal)	Finished Water Analysis: Chlorine Free Available (mg/L)	Finished Water Analysis: Fluoride (mg/L)	Finished Water Analysis: pH Value (S.U.)	Remarks
1	0	0		0.00	0.0	0.0	No water withdrawn from the ground.
2	0	0					
3	0	0					
4	0	0					
5	0	0					
6	0	0					
7	0	0					
8	0	0					
9	0	0					
10	0	0					
11	0	0					
12	0	0					
13	0	0					
14	0	0					
15	0	0					
16	0	0					
17	0	0					
18	0	0					
19	0	0					
20	0	0					
21	0	0					
22	0	0					
23	0	0					
24	0	0					
25	0	0					
26	0	0					
27	0	0					
28	0	0					
29	0	0					
30	0	0					
31	0	0					
Total	0	0	0	0.00	0	0.00	
Days	31	31	0	1	1	1	
Avg.	0	0	0.00	0.00	0.00	0.00	
Max.	0	0	0	0	0	0	
Min.	0	0	0	0	0	0	

*Treated and/or Pumped values should be reported as a total for a 24 hour period beginning 0000-2400.
(e.g., Take reading at same time each day so that it is for 24 hours)

Type Fluoride Compound Used: n/a
Type Chlorine Compound Used: Sodium Hypochlorite

I certify that all information contained on this form is correct and true to the best of my knowledge.

Signature: 
Title: Public Works Manager

Print Name: Oscar Crosby II
Certification Class: III
Phone #: 912-644 7999

Thunderbolt Meter

Public Works _____ 700 gals.

Fire Department _____ 6,700 gals.

Senior Citizens _____ 2,780 gals.

Town Hall _____ 26,500 gals.

Thompson Park _____ 46,580 gals.

Honey Park _____ 370 gals.

Nellie Johnson Park _____ 140 gals.

Cesoroni Ball Field _____ 10 gals.

Downing St. Lift Station
Gross Pumped _____ Pending

Savannah Water Usage _____ 1,792,403 gals.

Line Flushing _____ 163,000 gals.

Chlorides: Well #3 10 ppm Well #4 100 ppm



Comprehensive Work Order Report

Description	January	February	March	April	May	June	July	August	September	October	November	December	YTD
Water													
Cut-on	45	38	46	38	26	36	47	44	43	39			402
Cut-off	42	36	41	41	21	34	43	36	38	43			375
Red-tagged residences	0	0	0	0	0	0	0	0	2	2			4
Complaints- quality	1	1	0	0	1	1	1	1	1	1			8
Complaints- LWP	0	0	0	0	1	0	0	1	0				2
Meters read	1104	1096	1099	1098	1103	1095	1093	1097	1096	1095			10976
Meters re-read	10	3	8	5	7	9	4	3	5	9			63
Meters/Boxes replaced	0	0	0	6	0	0	1	1	0	0			8
New meters installed	0	0	0	0	1	0	0	0	1	0			2
Data Logs	2	8	4	14	4	10	4	6	11	4			67
Lines repaired/leaks	4	0	4	0	3	4	2	1	0	3			21
Hydrant flushed	2	0	0	0	2	4	4	2	2	8			24
Wastewater													
Complaints	0	0	0	0	0	0	0	0	0	0			0
Repairs- managed	0	0	0	0	1	0	0	1	3	0			5
Repairs- enacted	0	0	0	0	1	0	0	1	0	0			2
Spills	0	0	0	0	0	0	0	0	0	0			0
Back-ups	0	0	0	0	0	0	0	0	0	0			0
LS call-outs	0	0	0	0	4	0	0	4	2	2			12
Sanitation													
Garbage Tons collected	117.65	100.9	91.42	121.43	142.02								573.42
RECY Tons collected	13.81	20.18	24.18	15.61	16.3								90.08
Dry Trash Emptied	0	0	0	0	0	0	0	0	0	0			0
Complaints	0	0	0	0	0	0	0	3	2	1			6
Cans replaced/repaired	0	0	0	0	0	0	0	0	0	2			2
General Maintenance													
Facilities/Parks repairs	15	19	23	12	13	19	15	25	21	13			175
Road repairs	4	3	3	6	0	0	8	3	9	4			40
Signs repaired/installed	5	8	4	3	2	3	0	0	2	2			29
Stormwater													
Tide Gates/Outfalls	0	0	0	0	0	0	0	0	0	0			0
Canals/Ditches	2	6	7	16	4	4	8	0	5	0			52
Structures	0	1	0	0	0	0	0	0	0	0			1
Repairs	0	2	0	0	0	0	0	0	0	0			2
Maintenance	6	0	0	0	0	0	0	14	0	0			20
Inspections	18	15	42	0	0	0	0	0	0	0			75

DANA WILLIAMS
MAYOR

ROBERT L. MILIE
TOWN ADMINISTRATOR

DEATRE N. DENION
CLERK/ZONING ADMINISTRATOR

CHARLES W. BARROW
TOWN ATTORNEY

COUNCIL MEMBERS

DAVID P. CRENSHAW

EDWARD M. DROHAN, III

LAWRENCE WARD

BROOKS BARBAREE

JAMES LAVIN

BETHANY SKIPPER-GREER

To be on the agenda –
-Budget Items for Hearing
-Fire Dept. Cost Recovery Agreement – Recommend Consent Agenda as this is a billing to insurance companies only and only to non-County residents done by a third party – this is being used around the County
-Fire Dept. – Resolution or Ordinance allowing for such billing – Attorney Barrow decision on location in agenda – ties into the cost recovery
-Museum Lease – Recommended consent agenda
-Sanitation cost modification by $1 – recommended debate agenda

- Finance Report
- Dept. & Admin Report

Town Hall –

Roof – AC on Police side is out – part has been ordered and is set to be completed early Nov we are expecting them 11/4/22

Around Town –

Re-paving - Working to use our 2020 Local Maintenance Improvement Grant (LMIG) to repave Rowland as the road is in need and the infrastructure is sound – This grant must be used and accounted for this fiscal year to be eligible to receive 2023 LMIG funding – Bid has been modified as we are working with the County Asst. Manager and Engineering to use economies of scale to be added on their paving cycle – IGA is now in place and awaiting schedule from County of work – Scope of work has changed as with the County pricing the cost of Rowland alone would not meet the grant amount plus our match so Tuberson was added to the repaving list as a street with no infrastructure needs below and the proper length to not go over budget

Road work – Working with DPW Director Crosby on a comprehensive Shell Road infrastructure replacement as well as phase two repaving to hopefully consolidate 2021, 2022, 2023, and 2024 LMIG funding -

Grants –

- Actively working a Tree Grant and the 10 year Survey – Ga Forestry Commission

- State Grant with a high match but funding for speed signs etc. – working this now

Process Improvement – All still on the table

-Tax Commissioner meeting and will bring before Council a potential IGA for the TC to perform Thunderbolt's tax collection – increased collections – free up in house staff – more coordination with software – immediate liens and tax sales – not possible until next year – meeting set up with Deatre & Tax Commissioner – having trouble getting into see the Tax Commissioner

-

Town Departments –

Finance –

-Please see attached reports for March plus Ms. Brett assessment

Code Enforcement –

- In addition to normal enforcement actions beginning to look at condemning or moving towards that on certain structures within Town Limits – legal is involved to ensure the next step in subpoena process and accountability – order of tablet for in field use and tie into our current permitting software – Moving Code Enforcement under Municipal Court as we start to move Code into more enforcement and fines etc…
-

Police –

- See attached report

Fire -

- See attached report– Fire Station roof – sealing of structure and mold remediation next – see FD report of second floor transition- Prep for ISO inspection early 2023- all out of service hydrants replaced- two bay heaters in place of one were replaced

DPW-

- See attached report – Palm Trees planted on Mechanics – second phase of Mechanics underway to remove grass – low lying attractive plants and mulch – low maintenance design to look better, cost less and save labor– Designs for Honey Park are forthcoming – Two more sections of Mechanics are scheduled for the third week of Nov.

-

Newer Town Topics

- LOST (Local Option Sales Tax) Negotiations Training and Preparation – Including State Expert – Retired COS Manager Michael Brown – this is a 10 year set percentage – now heading into mediation
- Budget Prep for FY 23
- Project for budgeted money FY 22 full swing
- Christmas Festival